

**SUPPLEMENT ON LEGISLATION
AND LEGISLATIVE PROCESS
FOR
ADMINISTRATIVE LAW
THE AMERICAN PUBLIC
LAW SYSTEM
CASES AND MATERIALS
Seventh Edition**



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SUPPLEMENT

LEGISLATION AND LEGISLATIVE PROCESS

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A. INTRODUCTION TO HOW STATUTES ARE MADE

To work with statutes as a lawyer, it helps to know how they are made. Many of the theories and techniques of statutory interpretation are premised on assumptions about the legislative process, so lawyers must know something about that process in order to weigh the theories and techniques and use them intelligently. More concretely, courts and agencies interpreting a statute may rely upon its *legislative history* (the documents that Congress produces in deliberations), and a lawyer cannot use legislative history effectively without knowing how it is written. Further, any lawyer who works with an agency will soon realize that its officials are influenced by Congress, so it pays to know something about how Congress operates.

The workings of Congress are complex and subject to constant change and manipulation. Here we give an overview, centered on conditions today, but with attention to the ways in which Congress has changed in recent decades, for the body is incomprehensible unless viewed as an evolving organism. Students interested in digging deeper are advised to consult WALTER J. OLESZEK, *CONGRESSIONAL PROCEDURES AND THE POLICY PROCESS* (9th ed. 2013) and BARBARA SINCLAIR, *UNORTHODOX LAWMAKING: NEW LEGISLATIVE PROCESSES IN THE U.S. CONGRESS* (4th ed. 2012), on which we have frequently relied throughout our discussion.

First, some basics. For a bill to become law, it must be introduced and then enacted within a single two-year Congress. If a bill is introduced in one Congress and has not become law by the end of that Congress, it *dies* (expires). As a practical matter, deliberations on a certain policy may extend from one Congress to the next, but formally, a new bill has to be introduced in each of those Congresses as the embodiment of that policy. Lawyers should keep this in mind: Congress's main deliberations on the policy behind a statute may have occurred not on the bill that formally became law, but on some similar bill from a prior Congress.

When a bill is introduced, it is given a unique label. Thus, the bill "111 S. 281" was the 281st bill introduced in the Senate during the 111th Congress. The bill "111 H.R. 3590" was the 3,590th bill introduced in the House during the 111th Congress. (If the number of the Congress is evident from the context, it may be omitted.)

If a bill passes the chamber in which it was introduced, it is sent to the other chamber, retaining its label. The House may pass H.R. 3590 and send it to the Senate, whereupon the Senate will consider H.R. 3590. Thus, a bill labeled "H.R." can be considered in the Senate, and a bill labeled "S." can be considered in the House.

Once a single bill (with the same label and text) is passed by both chambers, it is presented to the President. If he signs it, it becomes law. If he vetoes it, it goes back to Congress for reconsideration and becomes law if two-thirds of each chamber agrees to override the veto. If the President does nothing with the bill, then, after ten days, it becomes law, "unless the Congress

by their Adjournment prevent its Return, in which Case it shall not be a Law.” U.S. Const., Art. I, § 7.

We have so far spoken casually of a bill “passing” a chamber, but such passage is the culmination of a process within that chamber that is often complex, normally including the following eight steps:

- the bill is *introduced* by a member of the chamber (the *sponsor*)
- the bill is *referred* to whichever committee of the chamber has jurisdiction
- the committee considers the bill (possibly holding *hearings* and a *markup*)
- the committee *reports* the bill to the chamber
- the bill is placed on the chamber’s *calendar*
- the bill is called up for consideration on the floor of the chamber
- the bill is debated (and possibly amended) on the floor of the chamber
- the bill is passed by the chamber

Note: If a bill (per the process above) passes one chamber, it is then *received* in the other chamber, which is the equivalent of its being introduced there. It must then normally run the gauntlet of all the remaining steps in that other chamber.

The eight-step procedure outlined above is our focus for the remainder of this Section. To understand the eight steps is (more or less) to understand how Congress works. The first five steps—from introduction through placement on the calendar—come under the heading “committee proceedings.” The remaining steps—from calling up the bill to passage—come under the heading “floor proceedings.”

1. THE NATURE OF CONGRESSIONAL PROCEDURE

Before we examine the procedural steps in each chamber, let us take a moment to ask a preliminary question: where do these procedures come from? Who makes them? The Constitution says little about the internal procedure and organization of each chamber. Instead the framers empowered each chamber largely to decide those things for itself. “Each House may determine the Rules of its Proceedings.” Art. I, § 5, cl. 1. “The House of Representatives shall chuse their Speaker and other Officers.” Art. I, § 2, cl. 5. And while the Constitution designates the Vice-President of the United States as President of the Senate, he rarely in fact presides, and even when he does, his procedural rulings can be appealed to the full chamber. The Constitution empowers the Senate to “chuse their other Officers,” including a Senator to preside whenever the Vice-President is absent. Art. I, § 3, cl. 4-5.¹

How does each chamber exercise its power to “determine the Rules of its Proceedings”? For the most part, it does so by adopting those rules in the form of *simple resolutions*. A simple resolution is a legislative vehicle that need only be adopted by a single chamber in order to come into effect, and its purpose is typically to govern the internal workings of the chamber.² The

¹ There are few exceptional points on which the Constitution does prescribe internal chamber procedure, e.g., that “a Majority of each [chamber] shall constitute a Quorum to do Business,” Art. I, § 5, cl. 1, and that “Each House shall keep a Journal of its Proceedings, and from to time publish the same, excepting such Parts as may in their Judgment require Secrecy; and the Yeas and Nays of the Members of either House on any question shall, at the Desire of one fifth of those Present, be entered on the Journal,” Art. I, § 5, cl. 3.

² There are two other kinds of resolutions:

- A *concurrent resolution* comes into effect when adopted by both the House and Senate, without presentment to the President, and its purpose is to govern the joint workings of the two chambers, e.g., deciding when Congress will adjourn, or setting the chambers’ joint framework for considering appropriations bills (the Budget Resolution).

standing rules of each chamber consist of simple resolutions. In the House, the membership adopts by simple resolution the whole “package” of standing rules at the start of each Congress, which is normally the same as the package from the previous Congress, though there can be modifications. And of course the House can also adopt a simple resolution mid-Congress to make any alterations it wants. In the Senate, the theory of the chamber as a “continuing body” means that the standing rules automatically carry over from one Congress to the next, but normally each rule can be traced to its origin in some simple resolution from a past session of the Senate, and all rules can be changed by simple resolution going forward.³

Though simple resolutions are the principal means by which each chamber governs itself, these resolutions cannot cover every eventuality. There will inevitably be procedural questions not clearly disposed of by the standing rules. When there is a gap or ambiguity in the rules, members must act ad hoc. In so doing, they invoke similar ad hoc actions from the past as precedent, and whatever action they take creates new precedent. The parliamentarians—nonpartisan procedural experts employed by the House and Senate—have made voluminous records of these precedents, available for use on future questions.⁴

2. COMMITTEE PROCEEDINGS IN THE HOUSE AND SENATE

Before we discuss committees, we must say a word about the organization of each chamber more generally. Although the members of each chamber are equal in the sense that each has a single vote once a bill is up for passage, the members are profoundly unequal in their capacity to influence whether a particular bill reaches that stage (and also whether, prior to the vote on passage, a particular amendment gets a vote). In other words, members are equal in their power to vote “yes” or “no” on any item appearing on the chamber’s agenda, but they are unequal in their power to set the agenda.

The power of setting the chamber’s agenda—of deciding which bills (and amendments) come up for a vote on the floor—rests disproportionately with specially privileged groups of legislators: the party leadership and the committees.

Party Leadership. Each chamber is divided into a majority and minority party caucus. Each party caucus, acting in secret at the start of each Congress, elects a small group of leaders, vested with a degree of directive power over how party caucus members act. In each of the party

• A *joint resolution* is legally no different from a statute. To come into effect, it must be approved according to Article I, section 7, just like a statute. Once in effect, it has the force of law, i.e., it can govern matters beyond the internal and joint workings of the two chambers, including private conduct. Whether an enactment is designated a “statute” or “joint resolution” is merely a matter of style. One exception: a proposed constitutional amendment is styled a “joint resolution,” even though it only requires the approval of the two chambers and is not presented to the President.

³ Not all standing rules of a chamber derive from simple resolutions. There are several statutes that, on the surface, appear to bind the House and Senate to follow certain internal procedures. For example, many statutes authorize expedited consideration of presidentially-negotiated trade agreements in both chambers. Such statutes present a conundrum. Normally, a statute cannot be altered, except by a future statute. If each chamber is required to follow these statutorily-prescribed rules for its own internal workings, then it cannot escape from those rules unless the statute is amended, that is, unless the *other chamber* and the *President* agree to the change. This seems to clash with the principle of Article I, section 5, that each chamber is to have unilateral control of its own internal procedures. However, most statutes prescribing internal chamber rules resolve the conundrum by including a disclaimer recognizing the power of each chamber to depart from the statutorily-prescribed rules by simple resolution. Not every such statute contains this kind of disclaimer. But even so, it has been the overwhelming pattern for the House and Senate to treat statutorily-prescribed rules, even without disclaimers, as subject to override by simple resolution. Aaron-Andrew P. Bruhl, *Using Statutes to Set Legislative Rules*, 19 J. LAW & POLITICS 345 (2003).

⁴ FLOYD M. RIDDICK & ALAN S. FRUMIN, RIDDICK’S SENATE PROCEDURE: PRECEDENTS AND PRACTICES (rev. ed. 1992) (1,608 pages, covering early republic to 1990); DESCHLER-BROWN-JOHNSON-SULLIVAN PRECEDENTS OF THE HOUSE OF REPRESENTATIVES (18 volumes, published 1977-2013 and covering 1936-2012); CANNON’S PRECEDENTS OF THE HOUSE OF REPRESENTATIVES (6 volumes, published 1935-41 and covering 1907-1935); HINDS’ PRECEDENTS OF THE HOUSE OF REPRESENTATIVES (5 volumes, published 1907 and covering 1789-1907).

caucuses, the leaders number four or five, with the top two designated Majority (or Minority) Leader and Majority (or Minority) Whip, except in the House majority party caucus, where the Speaker is above the Majority Leader.

Committees—Their Powers. The House and Senate are organized into standing (i.e., permanent) committees, listed below. Note that a committee of one chamber sometimes has a perfect or close counterpart in the other chamber (e.g., Appropriations, Budget, Judiciary), but often not. Each committee generally has the same proportion of majority-party members as the chamber at large and is chaired by a member of the majority party.

Senate Standing Committees

Agriculture, Nutrition, and Forestry
Appropriations
Armed Services
Banking, Housing, and Urban Affairs
Budget
Commerce, Science, and Transportation
Energy and Natural Resources
Environment and Public Works
Finance
Foreign Relations
Health, Education, Labor, and Pensions
Homeland Security and Governmental Affairs
Judiciary
Rules and Administration
Small Business and Entrepreneurship
Veterans' Affairs

House Standing Committees

Agriculture
Appropriations
Armed Services
Budget
Education and the Workforce
Energy and Commerce
Ethics
Financial Services
Foreign Affairs
Homeland Security
House Administration
Judiciary
Natural Resources
Oversight and Government Reform
Rules
Science, Space, and Technology
Small Business
Transportation and Infrastructure
Veterans' Affairs
Ways and Means

Each committee has jurisdiction over a set of topics, which is defined, in the first instance, by the standing rules of the chamber. If a bill is introduced on a topic, it is supposed to be *referred* to the committee covering that topic. The committee then decides whether to *report* the bill to the chamber. Historically, the norm has been that (1) every bill that is introduced is referred to a committee and (2) no bill can be considered on the floor unless that committee reports it. Another way of stating the norm is that each committee is the gatekeeper for new legislation within its jurisdiction. (There are important and growing exceptions to this norm, to be discussed shortly.)

In exercising their gatekeeping power, committees are highly selective. Of all the bills introduced in Congress, about 85% die in committee—that is, the bill is introduced and referred to the committee of jurisdiction, which refrains from reporting it before the Congress ends.

Although the gatekeeping power is formally vested in the committee as a whole—the motion to report a bill must be adopted by a majority vote of the committee—that power practically resides mainly with the committee's chairman. This is because the chairman customarily decides which bills the committee will consider. Further, the chair controls the committee's majority staff and budget, which gives him or her further influence over which

matters receive consideration. It is possible for a majority of the committee to override the chair's decision about whether to consider a bill, but that is rare. RICHARD L. HALL, *PARTICIPATION IN CONGRESS 97-98* (1996); OLESZEK, *supra*, at 125.

Committees—Limits on Their Powers. Although the jurisdiction of each committee is set by the standing rules of its chamber in the first instance, the rules are merely short lists of general topics. For example, here is the list for the House Ways and Means Committee, drawn from the Rules of the House of Representatives, Rule X, clause 1(t):

- (1) Customs revenue, collection districts, and ports of entry and delivery.
- (2) Reciprocal trade agreements.
- (3) Revenue measures generally.
- (4) Revenue measures relating to insular possessions.
- (5) Bonded debt of the United States, subject to the last sentence of clause 4(f) [of the Rules of the House of Representatives. This clause requires the Ways and Means Committee to recommend an appropriate level of public debt to the Budget Committee each year.]
- (6) Deposit of public monies.
- (7) Transportation of dutiable goods.
- (8) Tax exempt foundations and charitable trusts.
- (9) National Social Security (except health care and facilities programs that are supported from general revenues as opposed to payroll deductions and except work incentive programs).

The lists inevitably contain ambiguities and gaps. In such gray areas, a bill is to go to the committee with the “closest” jurisdiction. Discerning the “closest” committee is subjective. Lawmakers make it up as they go. As with all procedural actions, every referral becomes precedent for the future. Officially, referral decisions are made in the House by the Speaker and in the Senate by the presiding officer (a position normally filled by members of the majority party caucus on a rotating basis). Practically, these officers defer to the determinations of the parliamentarians, who are expert in the relevant precedents. The enterprising legislator, in structuring a bill, tries to game the rules and precedents, so the bill will go to a committee she views as favorable (often a committee of which she herself is a member or chair). Couching a bill as an amendment to a preexisting statute over which a friendly committee has jurisdiction raises the probability that the bill will go to that committee. Structuring a benefit program as a tax break (rather than government spending) means it will go to the House Ways and Means and Senate Finance Committees. At times, legislators, staffers, and lobbyists will submit arguments to the parliamentarian, based on precedent and bill structure, urging a certain referral, or they will ask the parliamentarian to read a draft bill to find out where it is likely to be referred—and how it must be revised to alter the destination. Committee jurisdictions are the evolving product of strategic manipulation by competing actors. This evolution and manipulation limit the monopoly of gatekeeping power that a single committee holds over a particular subject. See generally DAVID C. KING, *TURF WARS: HOW CONGRESSIONAL COMMITTEES CLAIM JURISDICTION* (1997).

In the House, the gatekeeping monopolies of committees have been further weakened by a 1975 rule that allowed for “multiple referral.” This meant the Speaker could refer a bill to more than one committee. The rule lowered the stakes of the referral decision and reduced the

motivation for turf battles. And it opened up the deliberative process by allowing two or more committees to consider the bill and propose changes to it. But it presented one danger: two or more committees now each had unilateral power to refrain from reporting the bill, thus blocking it from reaching the floor; this made it harder to get anything done. To address this problem, the House in 1995 altered the rule to require the Speaker, in every case of multiple referral, to designate one of the committees as having “primary jurisdiction,” and the Speaker can now impose a deadline on each non-primary committee and, if that committee fails to report by the deadline, discharge it (i.e., take the bill away from the committee, divesting it of power to block the bill). When used in this way, multiple referral creates the opportunity for more than one committee to study a bill and propose changes to it (thus giving the bill the benefit of more diverse kinds of expertise and constituent input), but without the danger of setting up additional veto points. When multiple committees each propose their own changes to a bill, it usually falls to the House majority party leadership to negotiate among the different versions. Because of this, the leadership has more power than under the old regime of one-committee monopoly. In recent years, about one-third of major bills in the House have been multiply referred. SINCLAIR, *supra*, at 12-16, 142-44.⁵

So far, we have focused on committee gatekeeping power vis-a-vis other committees. What about committee gatekeeping power against the chamber at large? How strong is it? Say that a bill is favored by a majority of the chamber but opposed by the committee(s) to which it has been referred. Is there anything the chamber majority can do?

In the Senate, there are two maneuvers by which members of the chamber can, without great difficulty, circumvent a committee that is blocking a bill. Because of these maneuvers, bypassing committee, “while not an everyday occurrence in the Senate, is easier to accomplish in that chamber than in the House.” OLESZEK, *supra*, at 319. Indeed, committees in the Senate have been bypassed in the past decade more than ever before, on about one-third of major bills. SINCLAIR, *supra*, at 147.

The first maneuver is for a Senator to *object to referral*. When a bill has been introduced and gone through its customary second reading, Senate Rule XIV says that any Senator can object to referring the bill to a committee, in which case the bill is automatically placed on the chamber’s calendar, eligible to be called up for consideration on the floor. At first glance, one might think this technique allows any Senator to steer a bill around committee by merely uttering the words “I object.” But it is not quite that easy. The objection can only be made under certain procedural circumstances (too arcane to explain here) that the Senate Majority Leader can prevent from arising. Thus, the maneuver requires the support of the Majority Leader. It is therefore confined to situations where the Majority Leader is at odds with a committee—unusual, since all committees are controlled by the majority party. The most spectacular instance occurred in 1964, when the liberal Democratic Majority Leader Mike Mansfield used Rule XIV to steer the House-passed Civil Rights Act around the Senate Judiciary Committee, chaired by segregationist Democrat James Eastland.

A second Senate-specific maneuver to circumvent committee is the *non-germane amendment*. While House rules require every amendment offered on the floor to be germane

⁵ Though multiple referral is also available in the Senate, it has been much rarer, in part because there are already several other Senate-specific maneuvers for affecting a bill outside the traditional committee process, which we shall discuss soon.

(relevant) to the underlying bill, Senate rules do not. Thus, if a Senator favors a bill that is bottled up in committee, she can offer that bill as an “amendment” to *any other bill* that happens to reach the Senate floor. Senator Everett Dirksen once offered the text of a major legislative reapportionment measure (bottled up in the Judiciary Committee) as an amendment to a bill declaring National American Legion Baseball Month. OLESZEK, *supra*, at 319. To be sure, the offer of an amendment in the Senate (like passage of a bill in the Senate) is debatable, and Senate rules require 60 votes to cut off debate. Hence, one needs a supermajority of the chamber to circumvent the committee. But all this means is that the maneuver is no easier (or harder) than passing a bill in the Senate. Significantly, the non-germane amendment is unlike the Rule XIV maneuver in that it does not require the help of the Majority Leader, so it can be decisive in a situation where (1) the minority caucus, plus a dissident faction of the majority party caucus, forms a chamber-wide majority of 60+ votes in favor of a bill but (2) the majority party leadership and the majority-party-controlled committee of jurisdiction oppose the bill.

In the House, neither of these two maneuvers is available, and a House committee therefore has greater power to defy a chamber-wide majority (at least when the majority party leadership is on the committee’s side). OLESZEK, *supra*, at 319. The traditional maneuver available to a chamber-wide majority in the House, when facing a recalcitrant committee, is the *discharge petition*. Any member of the House can start such a petition, and if a majority of House members sign it, the bill is automatically sprung from committee, and any member can move to call it up on the floor. But in fact, discharge petitions rarely succeed. Since 1931, only 47 of them have garnered the required number of signatures, resulting in only 19 bills passing the House and only three actual statutes. The last such petition to garner the requisite signatures was in 2002 (on the House analogue to the McCain-Feingold campaign finance reform, which became law). It is unclear why the discharge petition is not more common in the House; some think the mere threat of it may induce foot-dragging committees to report bills. GARY W. COX & MATTHEW D. MCCUBBINS, *LEGISLATIVE LEVIATHAN: PARTY GOVERNMENT IN THE HOUSE* 241 (2d ed. 2007).⁶

Theoretically, a House majority has another means of overriding a committee, and an extremely potent one, though it works only if the majority party leadership is on board. This is the *special rule*, a very important procedural device by which the majority party leadership calls up bills on the floor and structures floor proceedings. (We shall discuss the special rule in detail below, at pages 15-18.) Normally, bills called up by the leadership using a special rule are ones that *have* been reported from committee. But the leadership can also use a special rule to call up bills that have not been so reported. Since the 1980s, as House majority party caucuses have grown more cohesive and their leaders more powerful, this kind of bypass has become increasingly common and now happens on one-fifth to one-third of major bills. SINCLAIR, *supra*, at 147. But such bypasses often occur because the leadership and the relevant committee chair agree on the bill and want to get it to the floor quickly. SINCLAIR, *supra*, at 19-21, 146. That is, the special rule is often used in cooperation with the relevant committee, not as a means to defy that committee. The leadership *could* use the special rule to defy a committee, but instances of this happening openly are rare. OLESZEK, *supra*, at 186-87.

In the many instances when committee chairs ostensibly cooperate in this process, it may

⁶ The discharge petition is also available in the Senate, but never used, since nongermane amendments and objections to referral are more convenient weapons.

be that, sometimes, the chairs secretly disagree with the leadership's action but hide their feelings because they know the leadership cannot be stopped, and they want to conceal their own impotence. If the special rule does empower the leadership to circumvent defiant committee chairs, this may partly explain why discharge petitions are so rarely successful. Accumulating the signatures of a majority of House members requires at least some members of the majority party to sign, but if the majority party is broadly in favor of the bill, the leadership—which normally acts on the majority party's predominant view—can simply use a special rule to override the committee. Hence, the only situation in which members are likely to rely upon the discharge petition—and succeed—is when (1) the bill is opposed not only by the committee but also by most of the majority party and its leadership, yet (2) the minority party, plus a dissident faction of the majority party, form a chamber-wide majority in favor of the bill. This is what happened in the case of McCain-Feingold, when the Democrats peeled off a few dissident members of the Republican majority to obtain the necessary signatures. It is not surprising that these situations are rare, given the strong and growing party discipline and polarization that characterize the House.⁷

Committees—Their Motives. Though the exact degree of committee gatekeeping power varies with context and is sometimes unknowable, it is hard to deny that committees have *some* substantial amount of power. What do they use that power for? Roughly speaking, scholars have adopted two different views of what motivates committees.

The first view is that committees are representative of the preferences of the majority party caucus, or, alternately, of the chamber at large. Begin by imagining that, for each substantive issue, the majority party caucus (or chamber) has a preference, defined as the policy that the median member of the caucus (or chamber) considers ideal for the nation overall. Each committee represents this preference in some meaningful way. (One can posit various ways of operationalizing this: perhaps the entire committee is chosen so that the preference of its median member matches that of the median member of the chamber; or perhaps the committee's majority-party contingent is chosen so that the preference of that contingent's median member matches the preference of the median member of the majority party caucus.) But if committees simply mimic the preference of the majority party caucus (or chamber), what is their purpose? Expertise. The majority party caucus (or chamber) knows its ideal value choice for a particular substantive issue, but it may not know enough about the preexisting law or the affected industries to implement that choice effectively. For example, if the majority party caucus wants to make it so that all Americans have health insurance, it needs bill-designers who understand how the health and insurance industries are likely to behave under different possible statutory schemes. The division of labor provided by the committee system allows members to specialize and acquire such information, which they then use to make the preference of the caucus (or chamber) into a reality.

The second view is that committees are not representative of the preferences of any larger legislative group (whether the majority party caucus or the chamber) but instead are “preference outliers.” Committees turn out this way because statutory policies impose costs and distribute

⁷ There is one additional way to bypass committee in the House. As we shall discuss below (page 14), one of the techniques in the House for calling up a bill on the floor is *suspension of the rules*, which requires a two-thirds vote of the chamber. This technique is commonly used to call up bills that have been reported by a committee and placed on the calendar. But it can also be used to call up a bill that has not been reported by committee, thus bypassing the committee. But such use of the technique is unusual. The technique is also available in the Senate but almost never used there.

benefits in ways that are uneven across the states (or districts) that members individually represent. Because each member has some choice as to the committees on which she serves, she will self-select onto committees covering policy areas that have a concentrated impact on her state (or district). Imagine that 100 manufacturers, all concentrated in one small region, make a product that is sold to one million consumers, scattered uniformly across the nation. A product safety bill is proposed that will cost each manufacturer \$1,000 and provide expected benefits to each consumer of \$1. Thus, the total cost to industry is \$100,000, while the total benefit to consumers is ten times greater: \$1,000,000. From the perspective of society as a whole, the bill is obviously a good idea, and for that reason, all legislators not representing the small manufacturing region (including the median member of the chamber and the median member of the majority party caucus) favor it. But the lawmakers from the manufacturing region will be the ones motivated to self-select onto the committee with jurisdiction over the regulatory bill, where they will block it. Similar stories can be told about governmental benefit or procurement programs. Say that a military program is financed with \$1 each from a million taxpayers scattered uniformly across the nation, but it confers \$1,000 in profits on each of 100 companies, concentrated in one small region. And say the program is so inefficient as to provide no benefit to national security. From the perspective of society, the program ought to be terminated, and all legislators except the minority with companies in their districts will agree. But those representing the companies will self-select onto the relevant committee and stop any bill killing the program. Each lawmaker tolerates this kind of self-selection by her colleagues, so long as she herself can do it, too.

Which of the two views matches reality? The results of empirical studies gauging the preferences of legislators on and off committees have been mixed. Some committees are representative, others are outliers, and others are in between, and studies vary on how many fall into each category. One of the most elaborate studies finds that, during the long era of Democratic control of the House (1947-92), the committees on Appropriations, Budget, and Ways and Means were most representative (in the sense that their majority-party contingents matched the majority party caucus, and their total membership matched the chamber), while those most likely to be outliers included Agriculture (pro-farm) and Armed Services and Veterans' Affairs (pro-military). DAVID EPSTEIN & SHARYN O'HALLORAN, *DELEGATING POWERS: A TRANSACTION COST POLITICS APPROACH TO POLICY MAKING UNDER SEPARATE POWERS* 163-95 (1999). Compare John H. Aldrich & David W. Rohde, *Congressional Committees in a Continuing Partisan Era*, in *CONGRESS RECONSIDERED* 226-27 (Lawrence C. Dodd & Bruce I. Oppenheimer eds., 9th ed. 2009) (noting that, at least through the 1990s, committees varied greatly in their levels of internal party conflict, with the lowest levels occurring on "constituency committees" like Agriculture, Armed Services, and Veterans' Affairs).

This mixed reality is understandable. The majority party's need for experts that loyally carry out its program is real, as is the willingness of some members to commit themselves to the party's program and its implementation on particular issues. But members' tendency to self-select onto committees that disproportionately impact their constituents is likewise real. There will often be tension between these factors, though sometimes they may be synergistic. A majority party caucus needs loyal experts to implement its program, but it also needs to maintain its majority status, and doing that may be easier if it allows some of its members to self-select in a way that helps their parochial electoral prospects. Also, a party can better maintain the loyalty of its members on nationwide issues if it allows them rewards pertaining to parochial issues.

Committees—How Members and Chairs Are Selected. To better understand committee motives, including how they vary with context and over time, we must consider how the members and chairs of committees are selected. The first thing to note is that seats on committees are divvied up by party. By custom, the proportion of seats belonging to a party normally equals its proportion of the chamber overall. But how are a party's committee seats allocated among its members? In the party caucus of each chamber, there is a *steering committee*, normally dominated by the leadership, that assigns committee memberships and chairmanships at the start of each Congress. Assignments must then be approved by a vote of the caucus. Each steering committee professes to consider several criteria. Some of those criteria—a member's adherence to the party line, fundraising on the party's behalf, and substantive expertise—are consistent with the view of committees as loyal expert agents of the majority party caucus. But another factor considered by all steering committees is *seniority*. The longer a member has served in the chamber, the more she gets her pick of committees. The longer a member has served on a committee, the more likely she is to be selected as chair. What are the implications of assigning weight to seniority? On the one hand, seniority has some correlation with expertise. On the other hand, there is no reason to think that seniority correlates with loyalty to the preferences of the majority party caucus or chamber. The more seniority is respected, the more potential it has to entrench preference outliers.

The importance of seniority has varied across chambers, parties, and historical periods, and these differences profoundly affect the behavior of committees. For most of the twentieth century, seniority in both House and Senate was the overriding criterion for committee assignments and the sole criterion for selecting chairs: every committee was chaired by the member of the majority party who had served on the committee longest. This could make it extremely difficult for the majority party caucus to pursue a coherent program. Most famously, the Democratic majorities in the House and Senate were long hobbled in their effort to pursue civil rights legislation favored by a majority of the caucus (and passable with the help of Republicans), because key chairmanships were held by elderly, long-serving Southern Democrats who opposed such reforms. To be sure, it is hard to distinguish cause and effect: one can argue that the Democratic party was profoundly split on civil rights and that liberal Democrats tolerated the strict seniority norm for so long because they feared that challenging the Southern gatekeepers would cause their party to fall to pieces. GARY W. COX & MATTHEW D. MCCUBBINS, *SETTING THE AGENDA: RESPONSIBLE PARTY GOVERNMENT IN THE U.S. HOUSE OF REPRESENTATIVES 64-65* (2005). Ultimately, liberal Democrats in the 1960s bypassed and overrode the Southern Democratic chairmen and passed landmark civil rights legislation in league with Republicans—a move that did, in fact, disrupt the alliance between Northern liberals and the white South.

Partly as a result of the alliance's demise, the Democratic and Republican parties have become ever more ideologically homogenous, and ever more polarized from one another, from the 1970s to the present. This has made "party loyalty" a more coherent concept than in the past—and a more workable and attractive criterion for selecting committee members and chairmen. Seniority has accordingly declined in importance.

The first major step in this direction occurred in the 1970s, when the liberal majority of the House Democratic party caucus replaced the pure seniority rule with steering-committee

elections for committee chairs, which motivated several senior Democrats to move left in order to keep or win chairmanships. When the Republicans took over the House in 1995 under the leadership of Newt Gingrich, their steering committee departed from seniority even more dramatically. Further, they imposed six-year term limits on chairmanships to prevent chairs from building up autonomy. In 2005, the Republican leadership took the unprecedented step of ousting Rep. Christopher Smith from the chair of the Veterans' Affairs Committee for working against the party line. Aldrich & Rohde, *supra*, at 233. When Democrats took power in 2007, it appeared they might not be so anti-seniority as Republicans. Their steering committee generally chose senior members for chairmanships. OLESZEK, *supra*, at 124. And in 2009 they rescinded the six-year term limits—though, at the same time, Rep. Henry Waxman did successfully challenge Rep. John Dingell for the chairmanship of the Energy and Commerce Committee. This committee has jurisdiction over environmental issues, and in that area, Waxman was much closer to the Democratic caucus and the leadership than Dingell, whose devotion to his district's auto industry made him an outlier. When Republicans regained control in 2011, they reimposed term limits, construing the rule strictly to say the six-year clock had continued to run while Republicans were in the minority.⁸

In the Senate, the party caucuses have not gone as far in preferring loyalty to seniority, though there has been movement in that direction. For example, Senate Republicans since 1995 have imposed six-year limits on chairmanships. But these are less consequential than in the House: the Senate's small size means that every Senator sits on several committees, so when a senior Senator departs the chairmanship of one committee, he can typically become chair of another.

Committees—Their Proceedings and Reports. Now that we have a sense of the nature and limits of committee power and the motives that drive its exercise, we can examine more concretely the day-to-day work that a committee does on a bill. It should first be noted that intra-committee proceedings are partly governed by the standing rules of the chamber, but the gaps and ambiguities in those rules provide each committee and especially its chair with wide discretion to proceed as they see fit. Unlike the chamber floor, committees have no parliamentarians to regularize their activities.

Each committee has subcommittees, whose relationship to the committee is somewhat like the committee's relationship to the chamber. The committee can *refer* a bill to a subcommittee, which can then vote to *report* that bill back to the committee. Like a committee, a subcommittee can hold hearings and markups and is typically dominated by its chair, who controls the agenda. Bills vary in how much process occurs in the committee versus the subcommittee. Some bills are handled solely in committee, with no reference to a subcommittee. Other bills are subject to hearings and markup in subcommittee but nothing except a rubber-stamp report in committee. Still others have extensive process at both levels.

One of the main things a committee (or subcommittee) can do when considering a bill is hold a *hearing*. Witnesses commonly include (1) officials from federal agencies, who may have helped design or draft the bill and who may be the ones charged with administering it should it

⁸ To be sure, the caucus occasionally grants waivers, as it did after the November 2012 election to permit Rep. Paul Ryan to remain chair of the Budget Committee, but this exception proves the rule: it reflects Ryan's prowess as the party's ideological standard-bearer, not respect for his seniority.

pass; (2) representatives of stakeholders, including trade associations and advocacy groups; and (3) analysts from think tanks and academia. A hearing may be truly informational and spontaneous, aimed at educating the members on the meaning and workings of the bill and possible alternatives and airing the arguments for and against. But a hearing may also be a scripted performance, aimed at broadcasting members' entrenched views about the bill to the press. Over the past few generations, hearings have become, on average, less informational and more performative. One reason is the rise of television. Another reason is the rise of professional committee staff, which provide committee members with less-formal means of gathering information than hearings. Transcripts of hearings are commonly published.

A key event during committee consideration is the *markup*, that is, a public meeting of the committee (or subcommittee) at which members propose amendments to the bill, debate them, and vote on them. Amendments can be extensive and may amount to a complete rewrite of the bill. Note that, when a committee votes to make an amendment to a bill, what it technically does is vote to include, in its report of the bill to the chamber, a *recommendation that the chamber amend the bill in the manner specified*; a committee has no power to amend a bill unilaterally. That said, the committee has the option of drawing up an amended version of the bill and then having one of its members introduce that version *as a new bill* (a "clean bill"), which can then be referred to the committee, which can then report it, with the amendments baked into the cake.

Markups vary along several dimensions. They can be finished in a half hour or drag on for weeks. They can be run according to strict rules of parliamentary procedure (with amendments offered as fully-drafted texts) or in seminar fashion (with members agreeing on a "concept," to be reduced to text later by staff or Legislative Counsel). Abbe R. Gluck & Lisa Schultz Bressman, *Statutory Interpretation from the Inside—An Empirical Study of Congressional Drafting, Delegation, and the Canons: Part I*, 65 STAN. L. REV. 901, 968 (2013). Commonly, the markup will begin with some initial text, to which amendments are proposed. This initial text can be the bill as introduced. But the chair has the power to substitute a different text, which is then known as the *chairman's mark*. This conversation-starting power gives the chair further influence. As with hearings, markups can sometimes be tightly scripted, the actual decisions having been made beforehand in closed-door meetings, sometimes excluding the minority party members. Historically, markups were sometimes transcribed but usually were not published. More recently, transcripts have sometimes been published, or a video of the meeting has been posted on the committee website.

Committee proceedings culminate in the committee's vote to *report* the bill to the chamber. To *report* the bill means to place it under the chamber's control, so the chamber can take it up. Normally, when a committee reports a bill, it does so with a recommendation that it pass. This is not required: the committee can report the bill with a negative recommendation, or no recommendation. But that is unusual. If a committee is against a bill, the usual route is to refrain from reporting it at all.

When a committee reports a bill, it sends a copy (with any recommended amendments) to the chamber. It also sends a *committee report*, that is, a document explaining what the bill means, what it aims to accomplish, and why to vote for it. Typically, this document is the most sustained expert discussion of the bill published at any point in the legislative process.

The committee report has three main audiences. The first is the members of the chamber (and the staff who advise them), who rely upon the report to understand the bill and the arguments for passing it. Non-specialists in the area will find it easier to understand the bill's meaning from the committee report than to try to read the text of the bill itself.

The second audience consists of officials at the agency that will administer the law if enacted. When the text of the statute is ambiguous or otherwise furnishes agency officials with discretion, those officials will often look to the committee report for guidance on what members thought the bill meant, or what it was supposed to accomplish. One might say that agency officials are relying upon the committee report as an interpretive source to help discern "what the law is," but their motivation may be more practical than that. As noted in Chapter 2 of the Casebook (in Section D), agency officials have incentives to stay in the good graces of the committees with jurisdiction over them, so if the committee report reflects what those committee members want, that in itself may be reason enough for officials to follow it. See generally Robert A. Katzmann, *Madison Lecture: Statutes*, 87 N.Y.U. L. REV. 637, 656-61 (2012).

The third audience is the judiciary. As we discuss below (pages 42-43), courts may take committee reports into account when interpreting statutes. Members and their staffers, aware of this, may shape the report with an eye toward the courts. But judges are not the main audience for committee reports: in a recent survey of congressional staffers, slightly more cited agencies as an addressee of legislative history than cited courts. Gluck & Bressman, *supra*, at 972.

If members want a statute implemented in a certain way, why do they include such directives in the committee report and not the text of the bill? One possible reason is that the report's format allows lawmakers to speak in the idiom of policy and goals, whereas bill text tends toward the harder-edged language of commands, prohibitions, and authorizations. This may be valuable if lawmakers want flexibility in implementation. Or perhaps the reasons are more sinister. The committee must vote to report the bill itself, but it normally does not vote on the committee report, which is normally prepared by staff under control of the chair. The committee report therefore might serve as a conduit for the chair or staff to insert directives for which the committee itself would not vote. But this fear may be exaggerated. Every member of the committee has the right to submit "additional views" to be published with the report. That option may serve as a check on an opportunistic chair attempting to sneak something in. James J. Brudney, *Below the Surface: Comparing Legislative History Usage by the House of Lords and the Supreme Court*, 85 WASH. U. L. REV. 1, 53 (2007). Notably, at least some committees vote to report the bill on the basis of a conceptual plan, with the bill's actual text drafted later by staff or Legislative Counsel. In such cases, the bill text itself is no more subject to a committee vote than is the committee report. Gluck & Bressman, *supra*, at 968.

Placing the Bill on the Calendar. After a committee reports a bill to the chamber, the bill is placed on a *calendar*. A calendar is a list of bills that have been reported. The Senate has a single calendar for all bills. The House has two calendars for bills: the Union Calendar (for bills that raise money, spend money, or authorize spending money) and the House Calendar (for all other bills). The order of the bills on a calendar is the order in which they were reported.

The House and Senate both have default procedures providing that bills are to be

considered by the chamber in the order of the calendar. In fact, these procedures are never followed. The reason is that the order of the calendar does not reflect bills' importance or political urgency. Instead, each chamber has a set of techniques for calling up bills from the calendar *without* following the order of the calendar. Those techniques are examined in subsections 3 and 4, immediately below.

3. FLOOR PROCEEDINGS IN THE HOUSE

At any given time, the House has many bills on its calendars, varying greatly in importance and political urgency. The default procedure is for the House to consider the bills in the order of each calendar, that is, the order in which they were reported. In fact, the House never follows this procedure. Instead it uses four other techniques for calling up and considering bills, all of which are sensitive to political urgency and to the House's power structure.

Technique 1: Unanimous Consent. Any member can ask unanimous consent to call up a bill and pass it. If nobody objects, the bill is passed. Obviously, this only works for the most uncontroversial bills. A member seeking unanimous consent must be recognized by the Speaker, so the majority party leadership controls when members can attempt to use this technique.

Technique 2: Privilege. The House standing rules authorize certain committees to call up certain kinds of bills or proposed resolutions simply on their own power, whenever they choose, because these measures generally have high urgency. They are said to be *privileged*. For example, the Appropriations Committee has power to call up general appropriations bills anytime, and the Rules Committee has power to call up a proposed simple resolution altering the House's standing rules anytime. Ordinary bills are not privileged.

Technique 3: Suspension of the Rules. Any member can make a motion to "suspend the rules" and pass whatever bill she designates. As with unanimous consent, a member wishing to make this motion must be recognized by the Speaker, so the leadership decides when the technique can be used. When this motion is made, the House automatically follows a special expedited procedure. There are forty minutes of debate on the bill, and no amendments can be offered (except as part of the member's initial motion to suspend). At the end of debate, the House votes on the motion (and concomitantly on passage of the underlying bill), with two-thirds being required for success. This is a technique for rapidly passing bills that are uncontroversial enough to win the support of the leadership and a two-thirds majority, but not uncontroversial enough for unanimous consent. The majority of bills called up for consideration on the House floor are under this procedure.

Technique 4: The Special Rule. The special rule is the most important of the four techniques. It is used for the most controversial bills and is key to the majority party's control of the House. We will discuss it in detail.

Recall that the House has standing rules, applying to the consideration of all bills. These rules originate from simple resolutions.⁹ Crucially, it is possible for the House to adopt a simple resolution that sets down procedures that apply only to the consideration of *one particular bill*

⁹ Or, if the standing rule is prescribed by a statute, each chamber can alter it via simple resolution. See above, page 3, note 3.

and are tailor-made for the consideration of that one bill. Such a simple resolution is called a “special rule.” When a special rule is adopted for a particular bill, that bill is considered by the House according to the procedures laid down in the special rule, which (for the purpose of considering that one bill) carves out an exception to the ordinary standing rules of the House.

A special rule serves three important functions. First, it provides for the bill to be called up for consideration on the floor immediately, or at some appointed time in the near future, so the House need not follow the default procedure of considering the bill according to the order of the calendar. In plucking the bill from the calendar, the special rule serves the same function as unanimous consent or suspension of the rules, but unlike those techniques, it requires only a simple majority—the majority necessary to adopt any simple resolution—which is obviously easier to obtain than the two-thirds majority required by suspension of the rules, to say nothing of unanimous consent.

Second, the special rule can limit general debate on the bill. Limiting general debate is useful to the bill’s proponents, since otherwise the bill’s opponents can drag out the debate and hold the chamber’s agenda hostage, pressuring the proponents to give up or make concessions.

Third, the special rule can limit the amendments that may be offered to the bill from the floor. Limiting amendments is useful to the bill’s proponents because (a) the bill’s opponents can offer lots of frivolous amendments as an additional means to drag out the debate and (b) limiting amendments from the floor can prevent the members of the House from coalescing around an alternative to the bill.

For a special rule to take effect and actually govern consideration of the particular bill for which it is designed, the special rule must be adopted by a majority of the House, like any other simple resolution. The process leading up to the adoption vote is interesting and important. The key player is the House Rules Committee. Up to the late 1800s, this committee was confined (as its name would suggest) to the humdrum work of managing the House’s standing rules—that is, considering and reporting proposed simple resolutions to establish or alter standing rules on a general and permanent basis. But then, in the 1880s, the Rules Committee began devising “special rules” on a bill-by-bill basis. It would report them to the House and get them considered on the floor as privileged measures (see Technique 2, above). And it would get the House to adopt them with frequency. It has continued to do these things ever since. In this way, the Rules Committee has effectively acquired the power, on controversial matters, to decide which bills get considered on the House floor. If the Rules Committee dislikes a bill, it can (a) refuse to report a special rule for the bill, so the bill cannot be plucked from the calendar and will likely die at the end of the Congress, or (b) report a special rule that dooms the bill, e.g., by failing to limit debate or amendments in a way that the proponents want. A more fitting name than “Rules Committee” would be “Floor Control Committee.” It is the most powerful committee in the House. Nothing controversial can be done without its help.

Who controls the Rules Committee? That is the \$64,000 question, for whoever controls the Rules Committee effectively controls the House floor agenda. When the Rules Committee first invented special rules in the 1880s, it was under the control of the majority party leadership, with the Speaker as chair. But in subsequent years, the committee varied in its relationship to the leadership, partly due to strong seniority norms. In the 1950s, the Committee was famously

chaired by the segregationist Democrat Howard Smith, a “preference outlier” who held his post by virtue of seniority and used it to prevent civil rights bills supported by the liberal wing of his own caucus from reaching the floor.

Crucially, the Democratic party leadership seized control of the Rules Committee in the 1970s, and the committee has been, ever since, an organ of the majority party leadership. This has been true under both Democrats (up to 1995 and in 2007-11) and Republicans (in 1995-2007 and since 2011). The leadership keeps control by several means. Whereas chairs and majority party members of most committees are initially selected by the party’s steering committee, those of the Rules Committee are selected by the Speaker alone. And whereas most committees have their seats divvied up in proportion to the parties’ respective numbers in the chamber, the Rules Committee has an extra-large number of majority party members (9 out of 13). The leadership’s control of the Rules Committee means agenda control in the House is now more concentrated in the leadership than at any time in U.S. history. On the Committee’s history, see COX & MCCUBBINS, *SETTING THE AGENDA*, *supra*, at 55-65; Aldrich & Rohde, *supra*, at 220.

The leadership’s dominance of the House floor agenda derives not only from its control of the Rules Committee, but also from that committee’s ever more aggressive use of its powers. As noted earlier, one of the functions of a special rule is to limit amendments from the floor, but this is optional: the special rule can pluck the bill from the calendar and limit general debate while leaving members free to offer amendments as they please. In that case, it is called an *open rule*. (The other kinds of special rule are the *closed rule*, which prohibits all amendments except those recommended by the committee that reported the bill, and the *structured rule*, which allows amendments beyond those recommended by the committee reporting the bill, but only if they are hand-picked by the Rules Committee). Historically, open rules were common. But as the leadership has sought ever tighter control of the menu of options offered to the membership, limits on amendments have been growing. In the 1970s, the proportion of special rules on major bills that were structured or closed hovered around 10% to 20%, but in the 1980s and 1990s, in a trend that continued under both Democrats and Republicans, it climbed to more than 70%. Under the Republicans in 2005-07, the proportion reached 96%. Under the Democrats in 2009-11, it was 99%. SINCLAIR, *supra*, at 28, 150-51. Categorizations reported by the Republican Rules Committee for 2011-13, though not perfectly comparable to those just cited, indicate that 83% of all special rules were structured or closed—still a high proportion.

To the majority party, limiting amendments can bring great political advantages. Agenda control often changes the outcome. For example, say the Republicans are the majority party. On a particular issue, a committee reports a bill embodying a conservative policy (C). Other possibilities are a moderate policy (M) or a liberal policy (L). And say there are three kinds of representatives: conservative Republicans, moderate Republicans, and Democrats. The conservative Republicans prefer C, then M, then L. The moderate Republicans prefer M, then C, then L. The Democrats prefer L, then M, then C. Imagine also that the conservative Republicans are more numerous than the moderate Republicans and that the Republican party leadership, reflecting this, is composed of conservatives. But the conservative Republicans are not numerous enough to hold a majority of the chamber by themselves. They need the moderate Republicans in order to achieve that. Under these circumstances, what will happen to the bill? It depends on which options are on the agenda. If somebody can offer an amendment to substitute M for C, the Democrats can join with the Republican moderates to adopt M and pass the bill, thus rejecting C.

But the Republican leadership, consisting of conservatives, will prevent this from happening by having the Rules Committee report a structured special rule that permits no amendments to be offered except L. The Republican caucus will provide the votes to adopt the proposed special rule. The bill will then be considered according to the special rule. Democrats will offer L, but the special rule precludes anybody from offering M, so the moderate Republicans will join the rest of their party caucus in defeating L and passing C.

This hypothetical captures the essential dynamic of numerous actual House proceedings, but one aspect of it is puzzling. The Republican leadership, consisting of conservatives, had to get the Republican caucus to provide the votes to adopt the special rule that the Rules Committee reported. Republican moderates' votes were essential to this. Why would the moderates provide those crucial votes? Wasn't the special rule designed to prevent them from getting the policy they liked best?

These questions go to the deep structure of power in the House. The power of the Rules Committee (and of the leadership that controls it) derives largely from the willingness of the majority party caucus to adopt whatever proposed special rule the Committee reports. Why is the caucus—particularly its moderate members—so willing to do that? One might say it is because moderates are ever shrinking in importance: polarization means that each party is more ideologically homogenous, so its moderates are less important to its achievement of the requisite majority for a special rule. There is some truth to this. And yet moderates still do exist, and they overwhelmingly vote with their party to adopt special rules. Why? There is an extremely strong norm that all members of the majority party caucus must always vote in favor of adopting a special rule reported by the Rules Committee. The leadership regards disloyalty on the adoption of a special rule as the worst possible offense, deserving the worst kind of retaliation. In the face of this fierce demand for loyalty, a moderate legislator is likely to acquiesce, for at least three reasons. First, avoiding the obligation to make a choice publicly between the conservative (or liberal) bill and the moderate bill may spare the moderate legislator from the unpleasant dilemma of alienating either her primary electorate or her general electorate. Second, the cost to the moderate legislator of voting with her party on adopting the special rule is small. Even if her vote has the effect of structuring the agenda so as to advantage a policy that most of her constituents dislike, agenda manipulation is so difficult for voters to understand that she will probably incur little damage to her electoral prospects. Third, even if she does incur some damage, the leadership gives her a helping hand in exchange for her sacrifice: the House leadership distributes campaign money disproportionately to those party members who are forced to depart farthest from their constituents' preferences to maintain party cohesion. (On maintaining party loyalty to adopt special rules, see COX & MCCUBBINS, *SETTING THE AGENDA*, *supra*, at 25-34, 45-48; Jeffrey A. Jenkins & Nathan W. Monroe, *Buying Negative Agenda Control in the U.S. House*, 56 AM. J. POLI. SCI. 897 (2012).)

Actuated by these factors, majority party members do, in fact, exhibit very strong party loyalty in votes on special rules.¹⁰ From January 2003 to May 2014 (as this Supplement is

¹⁰ It is not only the vote on adopting the proposed special rule that is important, but also the immediately prior vote to cut off consideration of the proposed special rule. By winning the vote to cut off consideration, the majority party leadership prevents there from being any amendments to the proposed special rule; preventing such amendments is crucial to agenda control. Thus, the majority party leadership demands (and generally receives) absolute party loyalty on the vote to cut off consideration of the proposed special rule, just as it does on the vote to adopt the proposed special rule.

finalized), the House has voted on the adoption of hundreds of special rules under both parties, and *not one* has been defeated. Given the allegiance it receives on these votes, the majority party leadership has tight control of the House floor agenda. It tries and largely succeeds to put only those bills on the agenda that are supported by a majority of the majority party caucus. In the period from 1991 through May 2014, there were, on average, only 1.7 bills that passed the House per year without the support of a majority of the majority party caucus.¹¹

We close this discussion of House floor procedure with a rundown of how proceedings unfold when a special rule is used. (1) A member of the Rules Committee calls up the proposed special rule on the floor, as privileged business. (2) The House debates the proposed special rule. (3) The House votes in favor of a motion for the previous question, i.e., to cut off debate on the proposed special rule and to prevent any amendments to it—a vote on which the majority party leadership demands absolute loyalty. (4) The House votes to adopt the proposed special rule—another vote on which the leadership demands absolute loyalty. (5) Now that the special rule has been adopted, the underlying bill is called up, either immediately or at some appointed time, depending on what the special rule says to do. (6) The House engages in general debate on the underlying bill, considers amendments to it, and votes on whether to pass it, according to the schedule and directives set forth in the special rule.¹²

During general debate and consideration of amendments on the underlying bill (to the extent the special rule allows such things), the key players on the House floor are the two *floor managers*. One is designated by the majority party members of the committee that reported the bill, the other by the minority party members of that committee. The job of each floor manager is to allocate whatever time is allowed to each party under the special rule. Further, the floor managers often take the lead in explaining their parties' respective views on the bill. This frequently means that the majority floor manager, speaking in support of the bill, is called upon to explain what the bill means and answer questions about how it will operate. The floor manager's explanations can be an important source for agency officials or judges to discern the bill's meaning, much like a committee report. As with committee reports, critics question whether the floor manager's statements are a reliable indication of what other members actually think.

4. FLOOR PROCEEDINGS IN THE SENATE

Like the House, the Senate has many bills on its calendar, varying in importance, and its default procedure is to consider these bills in the order of the calendar, that is, the order in which they were reported. Like the House, the Senate never actually follows that default but instead relies on techniques that can call up bills out of calendar order. What are those techniques? Here the similarity to the House ends. The Senate has two techniques for calling up bills. The first is the *motion to proceed*, which has no analogue in the House. The second is *unanimous consent*, which, though superficially similar to unanimous consent in the House, plays a quite different role in the Senate.

¹¹ Calculations based on "House Votes Violating the 'Hastert Rule,'" Inside Congress, *New York Times* Website, available at <http://politics.nytimes.com/congress/votes/house/hastert-rule> (last visited June 21, 2014).

¹² Typically, the special rule will provide that the House, in order to engage in general debate and consider and vote on amendments, will temporarily convert itself into the *committee of the whole*—a body that is the same as the House itself, except that it operates under expedited procedures.

Technique 1: The Motion to Proceed (herein of the Filibuster and Cloture). Any Senator can make a motion to proceed to consider any particular bill that is on the calendar. The motion needs to win only a simple majority to succeed. If it wins that, the Senate then takes the bill from the calendar and can consider it, amend it (by a simple majority), and pass it (by a simple majority).

This sounds simple, but it is not. Each step in the process just described—adopting the motion to proceed, making an amendment, and passing the bill—is subject to debate. And Senate rules make it very difficult to cut off debate.

To understand this difficulty, we need some historical background. The typical legislative body, when it comes to any debatable matter (adopting a motion, making an amendment, passing a bill), provides some method by which a majority can cut off debate and force a vote on the matter. This is traditionally called the *previous question motion*. The Senate's original standing rules in 1789 contained language that seemed to provide for a previous question motion, but it was not so construed, and in any event, the Senate deleted the language upon revising its rules in 1806. In the course of the 1800s, the Senate established a series of precedents construing the rulebook's lack of a previous question motion to mean that the Senate had no power to halt debate on a bill and force a vote. Similarly, the Senate had no way of limiting the offer of amendments and little means to limit frivolous motions (e.g., for quorum counts). Thus, it was possible for one or more Senators to delay action on a bill indefinitely, so long as they kept talking, offering amendments, and making motions. By the late 1800s, the use of these techniques of obstruction came to be known as a *filibuster*.

A filibuster was costly to the senator who carried it out. It was tiring. It ate up time for consideration of other bills that the filibustering senator wanted. And it was considered uncouth, annoying, and abusive by other senators. This carried weight, for the Senate in the nineteenth century was a small group of men who worked with each other according to a strong set of informal and personal norms and constraints. Still, despite these costs, senators sometimes did filibuster, but only if they were strongly opposed to the bill at issue.

If a majority of senators supported a bill that was being filibustered, their only means of rescuing the bill was to “wait out” the filibuster. That is, they would keep the Senate in session, in hope that the obstructers would become too tired, or too worried about their relationships with their colleagues, to keep obstructing. But to do this, the bill's supporters had to stick around the chamber, for if they did not, the Senate would lack a quorum and (once the obstructers called for a quorum count) would have to adjourn until some appointed time. This would give the obstructers a break to go home to rest their voices, defeating the majority's effort to tire them out. Thus, whenever the obstructing senators were giving long speeches, the supporters of the bill also needed to be there, so the obstructers could not simply go home and claim victory for the day. Thus, the filibuster was exhausting and costly to *both sides*. The question was: which side would say “uncle” first? Which side was willing to incur more exhaustion, more strained relations, and more loss of time for other business? How badly did each side want victory on the particular bill that was being filibustered? The filibuster was a test of the two sides' intensity of preference. GREGORY J. WAWRO & ERIC SCHICKLER, *FILIBUSTER: OBSTRUCTION AND LAWMAKING IN THE U.S. SENATE* 25-54 (2006).

Through the 1800s and early 1900s, there was no formal way to stop a filibuster. And yet, for most of that period, filibusters were apparently rare. There were a couple of reasons for this. First, the Senate's workload was light enough that a bill's supporters could "wait out" a filibuster without making too great a sacrifice in terms of other business. Second, the Senate was a small group characterized by relatively tight personal relations, in which no member wanted to annoy his colleagues without a very good reason. Hence, the filibuster was confined to the few bills that senators most wanted to block. On most bills, no senator was willing to filibuster. A major historical study of obstruction in the Senate, by Wawro and Schickler, finds that the nineteenth-century Senate "functioned largely as a majoritarian body," though coalition size tended to increase toward the end of each Congress, when the scarcity of time for remaining business meant that senators were more willing to give in to filibusters, which meant other senators were more likely to conduct them. WAWRO & SCHICKLER, *supra*, at 20. See generally *id.* at 89-158; OLESZEK, *supra*, at 306.¹³

However, by the early 1900s, the Senate changed in several ways. As more states joined the union, the membership became larger. Turnover increased. As railroads improved, senators increasingly made trips back to their states mid-session and spent less time in Washington. Thus, their interactions with each other became depersonalized. Face-to-face relations and informal norms provided less of a check on uncooperative and abusive behavior. Individual senators were therefore more likely to obstruct. In addition, the body's workload increased, so that "waiting out" a filibuster became more costly in terms of the other business that had to be sacrificed. Majorities were therefore more likely to give up. This made filibustering all the more tempting. As a result, filibusters grew more common in the late 1800s and early 1900s. WAWRO & SCHICKLER, *supra*, at 181-210.

In response, the Senate in 1917 amended its standing rules to provide, for the first time, a formal motion to cut off debate on a matter, known as a *cloture motion*. To be adopted, the motion required two-thirds of Senators present and voting.

But just as the absence of any cloture motion in 1806-1917 had not meant that unanimity was necessary for the Senate to pass a bill, so the invention of the two-thirds cloture motion in 1917 did not mean that a two-thirds majority was necessary for the Senate to pass a bill. From 1917 through the 1960s, major bills commonly passed with less than a two-thirds majority, while successful cloture motions were very rare. WAWRO AND SCHICKLER, *supra*, at 153-55, 213, 259. The reason was that majorities were still willing to "wait out" obstructers, so they had a means of defeating the filibuster even without a two-thirds vote. *Id.* at 259. (In 1975, the Senate altered the rule on cloture to require three-fifths of the whole Senate, i.e., 60 votes.)

But from the 1970s to the present, the Senate has been transformed: it has come to require cloture-level supermajorities as a matter of course, to reach a vote on virtually any major bill. The reason, it seems, is that Senate majorities have completely lost their willingness to "wait out" filibusters. Why? Recent decades have seen a further rise in the Senate's workload, which has further increased the value of scarce legislative time. And extra-legislative demands on senators'

¹³ Wawro and Schickler argue that another reason for the predominantly majoritarian norm was Senators' awareness of the possibility that a simple majority could rein in obstruction using the procedural device of a ruling by the presiding officer. WAWRO & SCHICKLER, *supra*, at 61-62. We discuss this device below (at pages 25-26).

time have reached unprecedented levels, due to changes in campaigns and elections that require shockingly long hours of fundraising and weekly trips back to one's home state. Under these conditions, the opportunity cost of "waiting out" filibusters is too great for senators. Thus, if one or a few senators threaten to filibuster, the supporters of the bill either move for cloture or (if they lack the requisite supermajority) give up; they do not seriously consider forcing the prospective obstructers to burn up legislative time, for the sacrifice is too much. From the perspective of a senator considering a filibuster, this alters the calculus dramatically. The worst-case scenario is that you threaten to filibuster and are met with a successful cloture motion, but you need never *actually* filibuster. Thus, threatening to filibuster has become costless, and senators make such threats on virtually every significant bill with which they seriously disagree. No longer do they reserve the tactic for the occasional bill that they intensely oppose, on which they are willing to fight a war of attrition. WAWRO & SCHICKLER, *supra*, at 259-64; OLESZEK, *supra*, at 308-09.

With senators threatening to filibuster as a matter of course, cloture-level supermajorities have become a virtual necessity for passage. Thus, from the 1970s to the 1990s, the Senate evolved toward its present *de facto* requirement of a 60-vote supermajority to pass any major bill. Accordingly, there has been an exponential increase in the average number of times per Congress that cloture has been successfully invoked:

1963-1973	1.4
1973-1983	10.0
1983-1993	13.4
1993-2003	20.6
2003-2013	42.2

Compiled from *Senate Action on Cloture Motions*, U.S. Senate Website, *available at* www.senate.gov/pagelayout/reference/cloture_motions/clotureCounts.htm (last visited June 20, 2014).¹⁴

One might think that, if a bill's proponents gather sixty votes to end debate on the bill, they can simply move for cloture, get the motion adopted, and immediately proceed to pass the bill. But it is not that simple. Merely to make the cloture motion, one must gather sixteen signatures. There is then a two-day waiting period before the motion can be voted on (during which the Senate is free to do other business). If the motion, once voted on, receives the requisite sixty votes, the bill can then be considered *yet further*: each senator is entitled to speak for up to one hour, unless and until the total amount of post-cloture consideration reaches thirty hours.

¹⁴ If proposed legislation involves taxes or mandatory spending, the Senate may be able to circumvent the need for 60 votes by considering the bill under the elaborate procedure known as *reconciliation*, set forth in the Budget Act of 1974 and related amendments and chamber rules. Under this procedure, the House and Senate, when adopting the annual Budget Resolution, can include therein instructions to committees of the two chambers to devise a limited number of bills altering taxes and/or mandatory spending; those bills are then considered by the two chambers under expedited procedures set down in the Act. A reconciliation bill on the Senate floor is subject to a limited number of hours of debate, so cloture is unnecessary, and the bill needs only a simple majority. Although the reconciliation procedure was originally intended to reduce the deficit, its capacity to neutralize the filibuster has motivated senators of both parties to stretch its applicability to a broader range of measures, so long as those measures have something to do with taxes and/or mandatory spending. For example, Republicans in 2001 used reconciliation to pass tax cuts that increased the deficit, while Democrats in 2009 planned to use it to pass health care reform (though ultimately they used other means). Just how far the procedure can be stretched depends on how the Senate's presiding officer interprets the confusing and vague provisions of the Budget Act as amended—and also how artfully a policy change is drafted so that it seems oriented toward taxes and mandatory spending. OLESZEK, *supra*, at 86-91.

Only then is further consideration precluded, i.e., the Senate must, at last, vote on the bill itself. During post-cloture consideration, senators may offer amendments, and the senate may adopt them, but only up to the time limit.¹⁵

And there is yet another layer of complexity. The foregoing discussion focuses solely on the invocation of cloture *on passage of the bill itself*. But passage is only one of several stages in a bill's progress that are subject to debate and to filibuster—and therefore in need of cloture. The motion to proceed is subject to debate, so if any senator threatens to filibuster it, the majority will need to make a cloture motion *to end debate on the motion to proceed* and get the cloture motion adopted, and even if such cloture motion is adopted, there can then be up to one hour of further consideration per senator (capped at a total of thirty hours) before the Senate can actually vote to adopt the motion to proceed.¹⁶ This same principle applies to every single amendment. An amendment is debatable and therefore subject to filibuster, for which the majority may need to invoke cloture, and even if the majority succeeds on that, it then faces up to thirty more hours of consideration before the Senate can vote on adopting the amendment.¹⁷ Moreover, the principle applies to the adoption of a conference report.¹⁸

The upshot is that, if the obstructers are determined, they can force a supermajority to invoke cloture, and then consume up to thirty hours of Senate floor time, on each of several occasions—on the motion to proceed; on each and every amendment that the bill's proponents want to make (though usually the proponents just want a single amendment in the nature of a substitute, often the committee-approved version of the bill); on passage of the bill; and on the adoption of a conference report. Thus, even when there are sixty or more senators in favor of a bill, the opponents can put the Senate to much trouble, consuming time that would otherwise be available for other business. In proceedings on the Affordable Care Act (Obamacare) in 2009, the Republicans lacked the votes to defeat the 60-member coalition for the bill, but they forced four cloture votes (on the motion to proceed, two amendments, and final passage), and after two of those votes, they insisted on the full thirty hours of post-cloture consideration. SINCLAIR, *supra*,

¹⁵ During post-cloture consideration, the majority leader—whose position gives him the privilege of offering amendments before anyone else—has increasingly tended to “fill the amendment tree,” i.e., to offer amendments of his own, up to the Senate's limit on the number and type of amendments that can be pending at any one time. The majority leader and his allies then deliberate on those amendments at length, in order to run down the post-cloture clock. Their goal in doing so is to prevent opponents of the bill from offering amendments of their own, which (if offered) would threaten to unravel the coalition for the bill, or force members of the coalition to take politically difficult votes. The technique of filling the amendment tree, when combined with cloture, is a jerry-rigged means of controlling the agenda, similar in function to the House's special rule, but harder to use and less straightforward.

¹⁶ A rule change in January 2013 (113 S. Res. 16) allows the Senate to avoid the round of post-cloture consideration in the case of a successful cloture motion on a motion to proceed, but only if the cloture motion meets a test of bipartisan consensus: it must be signed by the majority leader and minority leader, plus another seven Democrats and seven Republicans.

¹⁷ Theoretically, if 60+ senators support an amendment in the nature of a substitute and want the bill, thus amended, to pass, they could (1) invoke cloture on the bill itself and (2) vote to make the amendment during post-cloture consideration, without having to make a cloture motion (and incur an additional round of up to 30 hours of post-cloture consideration) on the amendment. The problem with this strategy is that an amendment in the nature of a substitute will typically be so long that it will contain at least some material that is not germane to the original bill, and amendments during post-cloture consideration are required (by the Senate's standing rules) to be germane. Thus, the proponents will typically make the amendment prior to invoking cloture on the actual bill, which allows them to escape the germaneness requirement, though it also means the making of the amendment will require its own cloture motion (and entail its own round of post-cloture consideration, up to 30 hours). See CONGRESSIONAL RESEARCH SERVICE, INVOKING CLOTURE IN THE SENATE 3 (March 27, 2013).

¹⁸ Until recently, the multiple procedural steps necessary to *initiate* a conference were also subject to this principle and thus could result in yet more rounds of post-cloture consideration. Under the rule change of January 2013 (113 S. Res. 16), initiating conference is still debatable, and debate can still be cut off only by a cloture vote, but if the cloture vote is successful, the post-cloture consideration is no longer required.

at 199-210.

These events signify the power of a Senate minority to consume floor time *even when it loses on cloture*. Senators who want to do a substantial amount of business can incur such loss of time only on the few bills to which they are most committed; if such a large amount of time were expended on every bill, then very few bills would pass during the session. Thus, even if a party or coalition commands a 60-plus supermajority in the Senate, this does not mean it can pass whatever legislation it wants. It will be able to pass only a limited number of bills, for a minority of (say) twenty to forty senators can prevent all but the most important business from being done. On all but the most important business, even a majority of 60+ senators must compromise. Thus, it is wrong to say simply that the Senate needs a 60-vote supermajority in order to do business; rather, if it wants to do a substantial quantity of business, it practically requires the cooperation of an *even larger* supermajority.

Technique 2: Unanimous Consent. In the Senate, floor proceedings are dangerous for two reasons, both having to do with the wide individual autonomy of each senator. First, a senator's freedom to offer amendments on any subject means she can disrupt the coalitions that her colleagues are building and/or force her colleagues to take positions on matters about which they would prefer to remain silent. Second, a senator's freedom to debate without limit can eat up precious legislative time. In light of these factors, senators are reluctant to take up a bill unless they can be assured in advance that (a) amendments will be limited and (b) time will not be wasted. When the Senate takes up a bill via the motion to proceed, it can accomplish these goals by adopting a cloture motion, albeit in a blunt, one-size-fits-all manner.

But the Senate has another option besides the motion-to-proceed-followed-by-cloture: it can impose any structure it wants on a proceeding if it does so by *unanimous consent*. Any senator (customarily the majority leader) may ask unanimous consent that the Senate take a particular bill from the calendar and consider it according to some set of tailor-made procedures, with limitations on debate and amendments (often a list of designated amendments that are the only ones that can be offered). If nobody objects, the proposal is adopted by the Senate, and it becomes just as binding on the Senate—as affecting the particular bill—as the body's standing rules. Such a proposal is known as a *unanimous consent agreement* (UCA).

In some ways, the senatorial UCA is similar to a special rule in the House. It is a tailor-made procedural regime for a particular bill. It supersedes the body's standing rules as to that bill. And it functions to call up the bill and limit debate and amendments. But there is an obvious and profound difference between a House special rule and a senatorial UCA: a special rule can be adopted by a simple majority of the chamber, whereas a senatorial UCA requires the consent of all members of the chamber. Instead of being devised unilaterally by the majority party leadership (as is a special rule), the senatorial UCA is hammered out as a compromise, usually in closed-door meetings involving the majority leader and minority leader. The UCA is a consensus-oriented means of floor management that became customary in the Senate long before the present era of partisan polarization, when the Senate was far more collegial than it is now. In today's atmosphere, unanimity is harder to achieve than in the past, and the Senate runs less smoothly.

Despite this, the Senate still uses UCAs to call up, and structure proceedings on, the large majority of bills it considers each year. Members of the minority agree to UCAs for several

reasons. One is that many bills are minor and uncontroversial.¹⁹ Another is that UCAs can be structured in such a way as to attract minority support. For example, senators may draft a UCA so that it preserves some of the advantages that the minority would enjoy under the motion-to-proceed-followed-by-cloture, such as a provision stating that the bill must have sixty votes in order to pass. Minority senators may agree to UCAs on low-stakes bills that the majority wants in exchange for UCAs on low-stakes bills that they themselves want.

Still, it sometimes proves impossible for the two parties to nail down a UCA that provides a complete structure for debate and amendments on a bill. In that case, senators may be willing to adopt an *incomplete* UCA, which calls up the bill and provides a structure for the initial stage of the debate, in hope that, once that stage is complete, senators will have worked out a second UCA to cover the next stage. If no second-stage agreement can be hammered out, the debate may continue, like a high-wire act without a net, but if senators begin obstructing or offering coalition-disrupting amendments, the bill's supporters will need to decide whether to seek cloture or give up.

Everyday Life on the Senate Floor. Now that we know how motions to proceed and UCAs work, we can understand how business on the Senate floor unfolds day-to-day. The Senate majority leader—a weaker officer than the Speaker of the House—has only one significant power: the right to hold the floor, whenever he wishes. Using this right, he serves as a kind of traffic cop for the Senate's business, meaning that he personally makes motions to proceed and submits UCAs, or signals other senators to do so. In making these scheduling proposals (or signaling others to make them), the majority leader is merely acting as a clearinghouse for the preferences of the chamber at large. He makes a motion to proceed only if (1) he has 60 votes, which usually requires a compromise between his own party and several minority-party members, and (2) his party considers the bill important enough to incur the cost of invoking cloture. He submits a UCA only if it has been checked with all the members of his own caucus and blessed by the minority leader (who, in turn, has checked it with all the members of *his* own caucus). If the party leaders, in checking a proposed UCA with their caucuses, find that any senator is not willing to consent to the UCA, they will refrain from submitting it on the floor. When a senator says she will not consent to a UCA, she is said to be placing a *hold* on the bill. When that happens, proponents of the bill will often contact the holding senator to see if they can reach a compromise with her, e.g., an incomplete UCA. If that fails, the proponents must decide whether they want to try to persuade the majority leader and other colleagues to mount a campaign for cloture—or simply give up.

Can the Filibuster Be Abolished? The filibuster is available because the Senate's standing rules provide no means for a simple majority to cut off debate on a bill and force a vote immediately. The Senate's standing rules can of course be changed by simple resolution, but such a simple resolution is debatable. A cloture motion is available to end that debate, but the standing rules say that such a motion requires 67 votes (not the usual 60). Winning such a vote would require minority senators to vote to disempower themselves, which seems unlikely.

There is a possible way to abolish the filibuster without formally amending the Senate rules, recently nicknamed the “nuclear option.” The *interpretation* of the Senate's *existing* rules

¹⁹ Indeed, it is common for a UCA on a minor bill to provide simply that the bill be called up and instantly passed, with no debate or amendments. When a senator proposes such a UCA and nobody objects, the bill instantly passes the chamber.

occurs via rulings by the presiding officer. By the standing rules, such rulings can be appealed to the chamber, where they are decided by a simple majority, and there is a mechanism for a simple majority to cut off debate on such an appeal. Thus, senators opposed to the filibuster can argue that the Senate rules should be interpreted to empower a simple majority of the Senate to cut off debate on a bill. Such an interpretation fits oddly with the text of the Senate's rules, which clearly provide that a *supermajority* is necessary to cut off debate. And it clashes with well-established precedent.²⁰ But if 51 or more Senators nevertheless adopt this interpretation on appeal, there is no formal way of stopping them, as the Constitution makes the Senate supreme as to its own rules. The question is ultimately decided in the political arena. Gregory Koger, *Filibustering and Majority Rule in the Senate: The Contest Over Judicial Nominations, 2003-2005*, in *WHY NOT PARTIES? PARTY EFFECTS IN THE UNITED STATES SENATE 159-77* (Nathan Monroe, David Rohde, & Jason Roberts, eds., 2008). In November 2013, a majority of 52 Senators (all Democrats) used this method to abolish the filibuster for all judicial nominations (except to the Supreme Court) and all executive-branch nominations, though *not* for bills. 159 CONG. REC. S8418 (daily ed. Nov. 21, 2013).

An interesting puzzle is why the Senate so far has refrained from the nuclear option when it comes to bills. Why has it been impossible, in the realm of legislation, to assemble 51 senators to disempower the senators occupying the spots #52 through #60 on the chamber's political spectrum? One possibility is that the filibuster provides political cover that senators at or near the 51st spot find valuable. If (say) the Democrats control the Senate, Democratic senators near the 51st spot are likely to be moderates who must face liberal primary electorates. If bills could pass with 51 votes, these moderates would come under pressure to vote for more liberal policies than if every bill required 60 votes—pressure that moderates might like to avoid. Another possibility is that senators become socialized to the chamber's customs and especially to the promise that senators will continue to be individually powerful even when their party loses control. This is consistent with the fact that senior senators tend to be most resistant to reform. Eric Schickler & Gregory J. Wawro, *What the Filibuster Tells Us About the Senate*, 9 THE FORUM, Issue 4, Article 11 (2011). That said, it should be noted that the nuclear option, though never actually used for legislation, has still had some effect in that realm. The threat of it has helped to win 67-vote majorities for incremental rule changes, including the 1975 reduction of the ordinary cloture threshold to 60 votes. WAWRO & SCHICKLER, *FILIBUSTER*, *supra*, at 266-68.

5. RECONCILING HOUSE AND SENATE DIFFERENCES

When one chamber passes a bill, it is automatically *received* in the other chamber, which is the equivalent of its being introduced there. The bill has no special status in the other chamber. It is subject to the same procedures (or shortcuts around procedures) as any other bill.

To get to the President, the bill must pass both chambers in identical form. The simplest way for this to happen is for the chamber receiving the bill to pass it in the form received. But if the receiving chamber instead passes the bill with alterations, it goes back to the originating chamber, as altered. The originating chamber can then (1) pass the altered bill, in which case it goes to the President, (2) vote to insist on its own pre-alteration version, in which case the bill goes back to the other chamber, or (3) make its own alteration, creating a third version of the bill,

²⁰ The proponents of the interpretation may rely directly on the Constitution, which expressly provides supermajorities for some matters (e.g., impeachment), suggesting the framers intended a simple majority for all other matters.

which goes to the other chamber. The bill can keep going back and forth, in a process nicknamed *ping pong*, until both chambers pass the same text.

But there is one other option: the two chambers can set up a *conference committee*, that is, an inter-chamber body charged with producing a compromise bill on which the two chambers then vote. Historically, Congress has frequently set up conference committees on major bills, and these bodies have exercised tremendous influence. Recently, however, their use and influence have declined precipitously. This is due to partisan polarization. When the House and Senate are controlled by different parties, conference committees may not be formed, or may be unable to come to agreement. And even when the House and Senate are controlled by the same party, the House leadership tends to exploit the conference process aggressively for partisan gain, which prompts the Senate minority caucus to use the filibuster to stop the Senate from agreeing to form a conference committee in the first place. In the early 1990s, more than 90 bills per Congress went to conference, but in the 112th Congress (2011-13), the number was seven. To the extent that Congress today passes any major bills, it is more commonly through ping pong. Still, conference committees merit our attention, for many statutes presently on the books were hammered out partly in conference, and it always possible that conference committees could make a comeback.

The process of setting up a conference committee can begin once the two chambers have passed bills that have the same number (e.g., H.R. 123) but different texts. One chamber can then vote to ask for a conference, and the other chamber can vote to accept the invitation. In the Senate, 41 or more senators can use the filibuster to stop the Senate from making or accepting an invitation to go to conference.²¹

If the chambers do agree to go to conference, they must then choose their respective conferees. Each chamber can choose as many conferees as it wants. Usually, the House chooses a large number and the Senate a small number. This makes no difference to the outcome, for the conference can only issue its report if a majority of the House conferees *and* a majority of the Senate conferees vote for it. Officially, House conferees are chosen by the Speaker and Senate conferees by the Senate's presiding officer; in practice, each of these officers chooses a slate of Republicans and Democrats reflecting the two parties' numbers in the chamber. For much of the twentieth century, conferees from each party caucus would be the senior-most members of the standing committee that had reported the bill. Thus, conference reinforced seniority norms and committee turf. But since the 1970s, in keeping with trends discussed above, seniority and committee power have declined in importance, and the leaders of the party caucuses have asserted somewhat broader discretion in choosing conferees, appointing themselves or choosing members with more attention to ideological loyalty. When a bill is multiply referred in the House, conferee spots are distributed to members of the various committees that reported the bill, undermining any one committee's monopoly on the process.

If majorities of the House conferees and of the Senate conferees are able to agree on a compromise bill, the conference committee sends it to the two chambers, where it is labeled the *conference report*. The conference report is privileged business in both chambers, so any

²¹ As noted above (page 22, note 18), a recent rule change (113 S. Res. 16) limits the amount of *post-cloture* obstruction that a Senate minority can create on decisions to go to conference, but cloture is still required, so 60 votes are still needed to go to conference.

lawmaker can get it called up on the floor at virtually any time. Crucially, the standing rules of each chamber provide that the conference report *cannot be amended*. The vote must be all-or-nothing. This puts pressure on each chamber to accept the compromise bill “as is,” for a negative vote means the opportunity to enact a bill on the subject may be lost for the indefinite future. Such pressure means that the conferees wield great power, for they are the ones who decide what the content of the “must-pass” bill will be. (Although the conference report can be called up automatically and cannot be amended, it is still subject to general debate. This means that, in the Senate, the conference report can be filibustered and effectively requires 60 votes. In the House, consideration of a conference report is often governed by a special rule, which limits general debate.)

Conference committee proceedings have long been an occasion for hardball, which has intensified in recent years. See, e.g., Seth Grossman, *Tricameral Legislating: Statutory Interpretation in an Era of Conference Committee Ascendancy*, 9 N.Y.U. J. LEGIS & PUBLIC POLICY 251 (2005). Historically, conference committees were secretive, working major alterations in bills without outside input or explanation, trusting that the all-or-nothing vote would force the two chambers to accede. Both chambers in the 1970s adopted standing rules mandating that conference deliberations be public, but no rules prohibit conferees from meeting secretly in advance of the public meetings, so decisions are still made in closed-door gatherings, which now often exclude the minority party. Supposedly, the conference committee’s discretion to originate new policy is constrained by rules and precedents stating that each provision of the compromise bill must fall within the “scope” of the analogous provisions in the House and Senate bills. Thus, if the House bill authorizes a certain dollar amount for a program and the Senate bill a different dollar amount, the dollar amount in the conference report is supposed to fall between the two numbers. But for non-numerical provisions, the definition of the “scope” created by the House and Senate bills is subjective, and conferees may interpret the scope creatively to do as they please. Theoretically, a member in either chamber can raise a point of order against the conference report if it violates the scope requirements, but practically, members are under pressure to accept the report or lose the bill (and, in the House, a special rule may bar anybody from making a point of order). If the conference issues its report near the end of the session (or, in the case of the House, near the date for a vote set by special rule), members may not have enough time to read the bill before voting, forcing them to take the conferees’ product on blind faith, or lose the chance to legislate.

In addition to the compromise bill itself, the conferees also issue a *joint explanatory statement*, which is supposed to contain an explanation of why they wrote each provision as they did. In fact, the document can be as informative or uninformative as the conferees want it to be. When substantive, the joint explanatory statement is a very attractive source to agency officials and judges interpreting the statute, since it may be the only discussion of why a provision took the final form that it did. By contrast, ping pong—in which the party leaders usually take the lead in negotiating changes and do so behind closed doors—does not result in any document analogous to the joint explanatory statement. Hence, ping pong produces less for interpreters to go on. But for all its value, the joint explanatory statement is subject to the same criticisms as a committee report, particularly that it may reflect the views only of the conferees and not of the two chambers that ultimately adopt the report. Indeed, the criticism has more force in the case of conference committees, since a joint explanatory statement (in contrast to a committee report) cannot contain “additional views” by individual conferees, meaning there is less of a constraint

on rogue conferees “slipping in” language opportunistically.

6. CONGRESSIONAL PROCEDURES IN LITIGATION

Though the process for enacting a federal statute (including the documents produced along the way) may be of interest to judges and agency officials in discerning the statute’s *meaning*, the process is not relevant for determining the statute’s *validity*. Once a bill is passed in identical form by both chambers, a version of it known as the *enrolled bill* is signed, in each chamber, by the presiding officer, during open session. This open-session signing is an attestation by the two officers that the bill was passed according to constitutionally valid procedures. So long as this open-session signing occurred, judges will not ask questions about the process of the bill’s passage—not even questions about whether the process was constitutionally valid (e.g., whether the versions of the bill voted on by the House and Senate differed from each other, or from the enrolled bill). *Field v. Clark*, 143 U.S. 649 (1892). Federal courts’ unwillingness to scrutinize the procedures by which Congress enacts a statute contrasts starkly with those courts’ enthusiasm for scrutinizing the procedures by which a federal agency promulgates a regulation. Is this difference justified?

The hands-off attitude of the federal courts toward Congress is not inevitable. Some state courts, in dealing with state statutes, scrutinize legislative procedures to ensure that they conformed to the state constitution; if courts find a violation, they may hold the statute unconstitutional. Bear in mind that many state constitutions specify more elaborate procedures for their respective legislatures than the U.S. Constitution imposes on Congress (e.g., that a bill can only address a “single subject,” that no bill can ever bypass committee, that no bill can have its original “purpose” changed after it has been introduced, etc.). See Robert F. Williams, *State Constitutional Limits on Legislative Procedure: Legislative Compliance and Judicial Enforcement*, 48 U. PITT. L. REV. 797 (1987).

7. A WORD ON DRAFTING STATUTORY TEXT

The thing that the House and Senate formally vote to pass—and the thing that a President ultimately signs—is the text of the bill. Bill text can be produced and altered at virtually every stage of the process: introduction, markup, amendments on the floor, conference committee, etc. Members are in the business of evaluating bills and amendments and deciding how to vote on them, but they generally do not draft such text themselves. And unlike some states, the federal government does not have any laws or rules telling lawmakers to use a designated group of official draftsmen. Members can introduce bills and offer amendments written by anybody. As a practical matter, members rely upon four groups of people to draft:

1. *Agency Personnel*. The hardest thing about drafting a bill is that you must understand the preexisting law in the subject area to which your bill pertains. If you do not, your bill may interact with that preexisting law in unintended and potentially disastrous ways. If a federal agency already operates in the area, it is probable that nobody on Earth knows the preexisting law better than the agency’s employees (especially its career civil servants), for they “live” the law, day in and day out, for years on end. Indeed, when Congress legislates in an area, it is commonly because agency personnel have identified a problem in the workings of the current law. As Justice Frankfurter wrote in one regulatory case: “From the very beginning of our government

in 1789, federal legislation like that now under review has usually not only been sponsored but actually drafted by the appropriate executive agency.” *Cloverleaf Butter Co. v. Patterson*, 315 U.S. 148, 177 (1942) (Frankfurter, J., dissenting). On agencies’ continued importance in drafting today, see Katzmann, *supra*, at 659.

2. Congressional Committee Staff. When Justice Frankfurter cast agencies as the usual drafters of federal legislation in 1942, he was speaking at a time when those agencies had tens of thousands of professional employees, while Congress had little in-house staff and almost no permanent professional committee staff. From the 1940s to the 1970s, Congress caught up, hiring professional staff for each of its committees that today total more than 2,000 people. HARRISON W. FOX, JR. & SUSAN WEBB HAMMOND, *CONGRESSIONAL STAFFS: THE INVISIBLE FORCE IN AMERICAN LAWMAKING* 19-25 (1977). On each committee, staff slots are divided among the majority and minority parties, with the majority party having the lion’s share. Majority staff serve at the pleasure of the chair, minority staff at the pleasure of the ranking member. Committee staffers acquire substantial policy expertise, though their numbers are smaller than those of agency personnel, meaning they usually cannot achieve the degree of specialized knowledge that agencies have. Congressional committee chairs or ranking members may nonetheless prefer to rely on committee staff, for the staffers’ loyalty (as co-partisans and at-will employees) is more assured than that of career civil servants. Committee staff thus play a major role in drafting bill text (and are the main authors of committee reports, as discussed earlier).

3. Legislative Counsel. Since 1918, Congress has had two Offices of Legislative Counsel, one for the House and one for the Senate, to provide professional drafting services at the request of any member. Tiny in their early decades, the two offices grew substantially during the second half of the twentieth century. Today the House Office has about 50 attorney-drafters and the Senate Office about 40. Unlike committee staff, Legislative Counsel attorneys are nonpartisan. Whenever a congressman requests drafting services, Legislative Counsel attorneys provide it; they view the congressman as their client and consider themselves to be in a fiduciary relationship to him or her. Hence, they profess loyalty to members, but it is the loyalty of a lawyer to each of a rotating series of clients, not the loyalty of Democrat to Democrat or Republican to Republican. Indeed, an attorney in the Office may need to provide service to a Democrat one day and a Republican the next. As for expertise, Legislative Counsel attorneys are both more and less specialized than committee staff: more specialized in that they focus on bill-drafting and nothing else; less specialized in that their numbers are small compared to committee staff, so they cannot have nearly as fine a division of labor as those staff (to say nothing of the even finer division among agency personnel). In other words, Legislative Counsel attorneys cannot have nearly the policy expertise of committee staffers. They are experts only in drafting per se. In a recent survey, many committee staffers observed that Legislative Counsel attorneys have now become very prominent drafters of congressional legislation, but some added that Legislative Counsel’s lack of expertise in policy was causing an odd disconnect between drafting and policy formulation. Also, given that committee staff generally write committee reports, a bill’s text and its legislative history become strangely separated in terms of their authorship. Gluck & Bressman, *supra*, at 967-69; see also Lisa Schultz Bressman & Abbe R. Gluck, *Statutory Interpretation from the Inside—An Empirical Study of Congressional Drafting, Delegation, and the Canons: Part II*, 66 STAN. L. REV. 725, 737-47 (2014). It may be that, in the case of many statutes, the nitty-gritty of the bill text and the policy discourse of the committee report have a common ancestor in a conceptual plan hammered out by the key lawmakers. But that plan does not become part of the

public record and is not citable in litigation.

4. *Private Lobbyists.* There is nothing to stop members of Congress from introducing language drafted by representatives of business corporations, trade associations, labor unions, environmental groups, or other private entities. Clearly this does happen, though it is hard to find systematic data on the practice. E.g., Eric Lipton & Ben Protess, *Banks' Lobbyists Help in Drafting Financial Bills*, N.Y. TIMES DEALBOOK, May 23, 2013 (“Industry officials acknowledged that they played a role in drafting the legislation, but argued that the practice was common in Washington”). Enlisting lobbyists as drafters may be a way of assuring the relevant interest groups that lawmakers are deferring to their views, or to the deals that interest groups make among themselves. E.g., Ryan Lizza, *Getting to Maybe*, NEW YORKER, June 24, 2013, at 51 (noting that, in devising an immigration bill, Senators Lindsey Graham and Charles Schumer “met privately with the leaders of the A.F.L.-C.I.O. and the Chamber of Commerce and told them to write that provision [on guest workers] themselves” and quoting a Schumer aide stating, “We basically told them, if you guys reach an agreement amongst yourselves, we won’t question it” and will “just slide your version of it into [the] bill”). Alternatively, members may call upon lobbyists for drafting services because lobbyists have high levels of expertise, both in the substantive policy and the preexisting law. In some contexts, lobbyists are the only people who know as much as the agency personnel, and they may know more. (Indeed, they may be former agency personnel). Victoria F. Nourse & Jane S. Schacter, *The Politics of Legislative Drafting: A Congressional Case Study*, 77 N.Y.U. L. REV. 575, 587-88, 610-13 (2002). On the importance of lobbyists as information sources to lawmakers, see Richard L. Hall & Alan V. Deardorff, *Lobbying as a Legislative Subsidy*, 100 AM. POLI. SCI. REV. 69 (2006).

A Word About Reading. Several sources passingly note that members of Congress may not *read* the text of the bills or amendments on which they vote. E.g., Nourse & Schacter, *supra*, at 593, 608; OLESZEK, *supra*, at 275 n.71, 358; SINCLAIR, *supra*, at 99. This may sound shocking but is perhaps not surprising on reflection. Members are extremely busy and are called upon to vote on numerous texts, sometimes hundreds of pages in length and under time pressure. Statutory text is often so technically involved and interlaced with complex preexisting law as to be incomprehensible even to smart people. Specialists are needed to translate. So it is understandable that members defer to staffers, allied lobbyists, or others to tell them what text means. One also imagines that members engage in triage when reading, directly examining those provisions that dispose of the most contested issues and memorialize the most hard-fought deals.

B. INTRODUCTION TO STATUTORY INTERPRETATION

1. WHY READING STATUTES IS HARD

No introduction to the regulatory state can be complete without some exposure to the complexities of statutory interpretation and construction. The majority of legal questions concerning the scope of what an agency is allowed to do require lawyers (and frequently, judges) to go back to an agency’s authorizing statutes and try to figure out both what their words mean and how they are best applied to situations in dispute.

Such processes of interpretation are notoriously complex. The complexity partly inheres in properties of language, which inevitably is sometimes ambiguous or vague – conditions all the

more likely to arise if (as often happens) legislators reach agreement on a bill by refraining from resolving points on which they differ. But the complexity also results from an inescapable relationship between practices of statutory construction and debatable theories of government – theories, that is, regarding both what makes U.S. government action legitimate and how institutions ought to behave in order to secure that legitimacy.

To see this point clearly, imagine two citizens with very different views of what constitutes sound democratic practice. In one citizen's view, the core value commitment of American government is to plebiscitary accountability. In other words, for that citizen, legitimacy rests overwhelmingly on governance by people who hold their positions as a result of free and fair elections. Such a citizen would presumably want to minimize the role that unelected judges or unelected bureaucrats play in making the hard interpretive decisions that delimit an agency's authority. Unelected officials lack the electoral mandate that, in this citizen's view, is the necessary source of authority for a significant independent policy making role. It stands to reason that such a citizen would prefer methods of statutory interpretation designed entirely to discern and to apply the purposes of the elected legislature in fashioning the particular text that it enacted. Approaches to interpretation that conspicuously allow unelected officials (whether judges or bureaucrats) to vary from the political bargains embodied in statutes would seem naturally suspect. (On the other hand, to the extent unelected officials are faithfully implementing the policy preferences of the President, giving agencies interpretive leeway might appear to respect plebiscitary democracy in a different way.)

Another citizen, however, might argue that government rule is legitimate primarily to the extent that the interests of all citizens who are affected by government decision making are fairly accounted for in the crafting of public policy. Or, to put the matter differently, our second citizen might believe that the legitimacy of government action depends on democratic values in addition to electoral accountability – values that courts and perhaps even the agencies themselves are better positioned to protect than the elected legislature. In this citizen's view, unelected bureaucrats and unelected judges may have appropriate roles to play in construing statutes to overcome what are deemed to be deficiencies in the legislative process. These deficiencies may include such familiar pathologies as the role of narrow, but well-funded special interests on legislative outcomes, or circumstances as unavoidable as the passage of time, which can render past legislative bargains obsolete, even if not so disastrous as to mobilize corrective action by the legislature itself. Such obsolescence is particularly likely in the U.S. context, in which bicameralism and presentment make it harder to alter existing statutes than in parliamentary systems—an inertia strengthened by the recent prevalence of divided government and the routinization of the Senate filibuster. For these reasons, this second citizen might be attracted by methods of interpretation that lead an agency or a judge to attend, in the construction of texts, to important public values other than fidelity to original legislative intentions.

The point here is that one's preference for one or another theory of statutory construction is unlikely to rest entirely on ideas about language. It is likely to rest also on some set of normative ideas about the proper institutional roles of Congress, the executive, and the courts.

2. THEORIES OF INTERPRETATION

There is no one definitive way to catalogue all the approaches to statutory interpretation

that have evolved over the centuries. Leading modern scholars of statutory interpretation have, however, coalesced around a typology that places different approaches under three general headings – theories that aim to discern legislative intent, theories that focus all but exclusively on the meaning of text, and so-called dynamic theories, which look to both textual meaning and legislative intent, but which are guided at least as conspicuously by some normative conception of the judicial role that goes beyond straightforward fidelity to the enacting Congress. (Of course, dynamic interpretation, by focusing less on original legislative intentions, may prove more faithful to those who currently inhabit the elected branches of government.)

a. Legislative Intent

RECTOR OF HOLY TRINITY CHURCH V. UNITED STATES

Supreme Court of the United States, 1892
143 U.S. 457

Mr. Justice BREWER delivered the opinion of the court.

Plaintiff in error is a corporation duly organized and incorporated as a religious society under the laws of the state of New York. E. Walpole Warren was, prior to September, 1887, an alien residing in England. In that month the plaintiff in error made a contract with him, by which he was to remove to the city of New York, and enter into its service as rector and pastor; and, in pursuance of such contract, Warren did so remove and enter upon such service. It is claimed by the United States that this contract on the part of the plaintiff in error was forbidden by [the Alien Contract Labor Act of 1885,] chapter 164, 23 [Stat.] 332; and an action was commenced to recover the penalty prescribed by that act. The circuit court held that the contract was within the prohibition of the statute, and rendered judgment accordingly, and the single question presented for our determination is whether it erred in that conclusion.

The first section describes the act forbidden, and is in these words:

“Be it enacted by the senate and house of representatives of the United States of America, in congress assembled, that from and after the passage of this act it shall be unlawful for any person, company, partnership, or corporation, in any manner whatsoever, to prepay the transportation, or in any way assist or encourage the importation or migration, of any alien or aliens, any foreigner or foreigners, into the United States, its territories, or the District of Columbia, under contract or agreement, parol or special, express or implied, made previous to the importation or migration of such alien or aliens, foreigner or foreigners, to perform labor or service of any kind in the United States, its territories, or the District of Columbia.”

It must be conceded that the act of the corporation is within the letter of this section, for the relation of rector to his church is one of service, and implies labor on the one side with compensation on the other. Not only are the general words “labor” and “service” both used, but also, as it were to guard against any narrow interpretation and emphasize a breadth of meaning, to them is added “of any kind;” and, further, as noticed by the circuit judge in his opinion, the fifth section, which makes specific exceptions, among them professional actors, artists, lecturers, singers, and domestic servants, strengthens the idea that every other kind of labor and service was intended to be reached by the first section. While there is great force to this reasoning, we

cannot think congress intended to denounce with penalties a transaction like that in the present case. It is a familiar rule that a thing may be within the letter of the statute and yet not within the statute, because not within its spirit nor within the intention of its makers. This has been often asserted, and the Reports are full of cases illustrating its application. This is not the substitution of the will of the judge for that of the legislator; for frequently words of general meaning are used in a statute, words broad enough to include an act in question, and yet a consideration of the whole legislation, or of the circumstances surrounding its enactment, or of the absurd results which follow from giving such broad meaning to the words, makes it unreasonable to believe that the legislator intended to include the particular act. As said in *Stradling v. Morgan*, [1 Plow. 199, 205 (K.B. 1560)]: "From which cases it appears that the sages of the law heretofore have construed statutes quite contrary to the letter in some appearance, and those statutes which comprehend all things in the letter they have expounded to extend to but some things, and those which generally prohibit all people from doing such an act they have interpreted to permit some people to do it, and those which include every person in the letter they have adjudged to reach to some persons only, which expositions have always been founded upon the intent of the legislature, which they have collected sometimes by considering the cause and necessity of making the act, sometimes by comparing one part of the act with another, and sometimes by foreign circumstances." * * *

Among other things which may be considered in determining the intent of the legislature is the title of the act. We do not mean that it may be used to add to or take from the body of the statute, but it may help to interpret its meaning. * * *

* * * Now, the title of this act is, "An act to prohibit the importation and migration of foreigners and aliens under contract or agreement to perform labor in the United States, its territories, and the District of Columbia.["] Obviously the thought expressed in this reaches only to the work of the manual laborer, as distinguished from that of the professional man. No one reading such a title would suppose that congress had in its mind any purpose of staying the coming into this country of ministers of the gospel, or, indeed, of any class whose toil is that of the brain. The common understanding of the terms "labor" and "laborers" does not include preaching and preachers, and it is to be assumed that words and phrases are used in their ordinary meaning. So whatever of light is thrown upon the statute by the language of the title indicates an exclusion from its penal provisions of all contracts for the employment of ministers, rectors, and pastors.

Again, another guide to the meaning of a statute is found in the evil which it is designed to remedy; and for this the court properly looks at contemporaneous events, the situation as it existed, and as it was pressed upon the attention of the legislative body. The situation which called for this statute was briefly but fully stated by Mr. Justice BROWN when, as district judge, he decided the case of *U.S. v. Craig*, [28 F. 795, 798 (C.C. E.D. Mich. 1886)]: "The motives and history of the act are matters of common knowledge. It had become the practice for large capitalists in this country to contract with their agents abroad for the shipment of great numbers of an ignorant and servile class of foreign laborers, under contracts by which the employer agreed, upon the one hand, to prepay their passage, while, upon the other hand, the laborers agreed to work after their arrival for a certain time at a low rate of wages. The effect of this was to break down the labor market, and to reduce other laborers engaged in like occupations to the level of the assisted immigrant. The evil finally became so flagrant that an appeal was made to congress

for relief by the passage of the act in question, the design of which was to raise the standard of foreign immigrants, and to discountenance the migration of those who had not sufficient means in their own hands, or those of their friends, to pay their passage.”²²

It appears, also, from the petitions [to congress], and in the testimony presented before the committees of congress, that it was this cheap, unskilled labor which was making the trouble, and the influx of which congress sought to prevent. It was never suggested that we had in this country a surplus of brain toilers, and, least of all, that the market for the services of Christian ministers was depressed by foreign competition. Those were matters to which the attention of congress, or of the people, was not directed. So far, then, as the evil which was sought to be remedied interprets the statute, it also guides to an exclusion of this contract from the penalties of the act.

A singular circumstance, throwing light upon the intent of congress, is found in this extract from the report of the senate committee on education and labor, recommending the passage of the bill: “The general facts and considerations which induce the committee to recommend the passage of this bill are set forth in the report of the committee of the house. The committee report the bill back without amendment, although there are certain features thereof which might well be changed or modified, in the hope that the bill may not fail of passage during the present session. Especially would the committee have otherwise recommended amendments, substituting for the expression, ‘labor and service,’ whenever it occurs in the body of the bill, the words ‘manual labor’ or ‘manual service,’ as sufficiently broad to accomplish the purposes of the bill, and that such amendments would remove objections which a sharp and perhaps unfriendly criticism may urge to the proposed legislation. The committee, however, believing that the bill in its present form will be construed as including only those whose labor or service is manual in character, and being very desirous that the bill become a law before the adjournment, have reported the bill without change.” Page 6059, Congressional Record, 48th Cong. And, referring back to the report of the committee of the house, there appears this language: “It seeks to restrain and prohibit the immigration or importation of laborers who would have never seen our shores but for the inducements and allurements of men whose only object is to obtain labor at the lowest possible rate, regardless of the social and material well-being of our own citizens, and regardless of the evil consequences which result to American laborers from such immigration. This class of immigrants care nothing about our institutions, and in many instances never even heard of them. They are men whose passage is paid by the importers. They come here under contract to labor for a certain number of years. They are ignorant of our social condition, and, that they may remain so, they are isolated and prevented from coming into contact with Americans. They are generally from the lowest social stratum, and live upon the coarsest food, and in hovels of a character before unknown to American workmen. They, as a rule, do not become citizens, and are certainly not a desirable acquisition to the body politic. The inevitable tendency of their presence among us is to degrade American labor, and to reduce it to the level of the imported pauper labor.” Page 5359, Congressional Record, 48th Cong.

We find, therefore, that the title of the act, the evil which was intended to be remedied, the circumstances surrounding the appeal to congress, the reports of the committee of each house, all concur in affirming that the intent of congress was simply to stay the influx of this cheap,

²² [This passage from *United States v. Craig* cites no sources. –Ed.]

unskilled labor.

But, beyond all these matters, no purpose of action against religion can be imputed to any legislation, state or national, because this is a religious people. This is historically true. From the discovery of this continent to the present hour, there is a single voice making this affirmation. [Quotations followed from several colonial documents, including charters of various colonies.] * *

* * * [T]he declaration of independence recognizes the presence of the Divine in human affairs in these words: "We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable Rights, that among these are Life, Liberty, and the pursuit of Happiness." "We, therefore, the Representatives of the united States of America, in General Congress, Assembled, appealing to the Supreme Judge of the world for the rectitude of our intentions, do, in the Name and by Authority of the good People of these Colonies, solemnly publish and declare," etc.; "And for the support of this Declaration, with a firm reliance on the Protection of Divine Providence, we mutually pledge to each other our Lives, our Fortunes, and our sacred Honor."

If we examine the constitutions of the various states, we find in them a constant recognition of religious obligations. Every constitution of every one of the 44 states contains language which, either directly or by clear implication, recognizes a profound reverence for religion, and an assumption that its influence in all human affairs is essential to the well-being of the community. This recognition may be in the preamble, such as is found in the constitution of Illinois, 1870: "We, the people of the state of Illinois, grateful to Almighty God for the civil, political, and religious liberty which He hath so long permitted us to enjoy, and looking to Him for a blessing upon our endeavors to secure and transmit the same unimpaired to succeeding generations," etc. [Quotations followed from the constitutions of Indiana, Maryland, Massachusetts, Mississippi, and Delaware.] * * *

Even the constitution of the United States, which is supposed to have little touch upon the private life of the individual, contains in the first amendment a declaration common to the constitutions of all the states, as follows: "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof," etc.,—and also provides in article 1, § 7, (a provision common to many constitutions,) that the executive shall have 10 days (Sundays excepted) within which to determine whether he will approve or veto a bill.

There is no dissonance in these declarations. There is a universal language pervading them all, having one meaning. They affirm and reaffirm that this is a religious nation. These are not individual sayings, declarations of private persons. They are organic utterances. They speak the voice of the entire people. While because of a general recognition of this truth the question has seldom been presented to the courts, yet we find that in *Updegraph v. Com.*, [11 Serg. & Rawle 394, 400 (Pa. 1824)], it was decided that, "Christianity, general Christianity, is, and always has been, a part of the common law of Pennsylvania; * * * not Christianity with an established church and tithes and spiritual courts, but Christianity with liberty of conscience to all men." * *

* And in the famous case of *Vidal v. Girard's Ex'rs*, 2 How. 127 [43 U.S. 127, 198 (1844)], this court, while sustaining the will of Mr. Girard, with its provision for the creation of a college into which no minister should be permitted to enter, observed: "It is also said, and truly, that the

Christian religion is a part of the common law of Pennsylvania.”

If we pass beyond these matters to a view of American life, as expressed by its laws, its business, its customs, and its society, we find every where a clear recognition of the same truth. Among other matters note the following: The form of oath universally prevailing, concluding with an appeal to the Almighty; the custom of opening sessions of all deliberative bodies and most conventions with prayer; the prefatory words of all wills, “In the name of God, amen;” the laws respecting the observance of the Sabbath, with the general cessation of all secular business, and the closing of courts, legislatures, and other similar public assemblies on that day; the churches and church organizations which abound in every city, town, and hamlet; the multitude of charitable organizations existing every where under Christian auspices; the gigantic missionary associations, with general support, and aiming to establish Christian missions in every quarter of the globe. These, and many other matters which might be noticed, add a volume of unofficial declarations to the mass of organic utterances that this is a Christian nation. In the face of all these, shall it be believed that a congress of the United States intended to make it a misdemeanor for a church of this country to contract for the services of a Christian minister residing in another nation?

Suppose, in the congress that passed this act, some member had offered a bill which in terms declared that, if any Roman Catholic church in this country should contract with Cardinal Manning to come to this country, and enter into its service as pastor and priest, or any Episcopal church should enter into a like contract with Canon Farrar, or any Baptist church should make similar arrangements with Rev. Mr. Spurgeon, or any Jewish synagogue with some eminent rabbi, such contract should be adjudged unlawful and void, and the church making it be subject to prosecution and punishment. Can it be believed that it would have received a minute of approving thought or a single vote? Yet it is contended that such was, in effect, the meaning of this statute. The construction invoked cannot be accepted as correct. It is a case where there was presented a definite evil, in view of which the legislature used general terms with the purpose of reaching all phases of that evil; and thereafter, unexpectedly, it is developed that the general language thus employed is broad enough to reach cases and acts which the whole history and life of the country affirm could not have been intentionally legislated against. It is the duty of the courts, under those circumstances, to say that, however broad the language of the statute may be, the act, although within the letter, is not within the intention of the legislature, and therefore cannot be within the statute.

The judgment will be reversed, and the case remanded for further proceedings in accordance with this opinion.

NOTES

1. *Discerning Legislative Intent in Holy Trinity and Beyond*. As noted by three prominent legislation scholars, “Anglo-American theories of statutory interpretation have traditionally emphasized legislative intent as the object or goal of statutory interpretation.” WILLIAM N. ESKRIDGE, JR., PHILIP P. FRICKEY, AND ELIZABETH GARRETT, *LEGISLATION AND STATUTORY INTERPRETATION* 221 (2d ed. 2006). Because legislation is a kind of purposive communicative act, it makes intuitive sense that a statute ought to be applied in a way that fulfills its authors’ purposes.

The notorious problem here, of course, is that the idea of legislative intent is highly ambiguous. In seeking legislative intent, courts sometimes speak as if they are seeking a specific intention that motivated a particular legislative enactment. Perhaps the most celebrated example of this approach is *Holy Trinity*, excerpted above. In holding that the statute did not prohibit a church from pre-paying for the ocean voyage of an English cleric hired to be its pastor, the Court cites the ordinary meaning of the word “labor,” events surrounding enactment of the law, and aspects of the statute’s legislative history to conclude that Congress specifically intended to preclude only the importation of manual labor.

It is questionable, however, whether this intention could be persuasively attributed to enough members of the House and Senate to make it a reasonable judgment of what majorities of both chambers consciously had in mind. The law contained some specific exemptions; “pastors” was not among them. In addition, recent scholarship has turned up floor deliberations on the Alien Contract Labor Act that were not cited by Justice Brewer and seem to go against the history that he constructed on the basis of the committee reports, e.g., the Senate floor manager suggested that the bill as written applied to professionals and so “[p]erhaps * * * ought to be further amended,” which it was not. ADRIAN VERMEULE, *JUDGING UNDER UNCERTAINTY: AN INSTITUTIONAL THEORY OF LEGAL INTERPRETATION* 93-98 (2006). These doubts highlight the difficulties of a “specific intent” approach to statutory interpretation: the often debatable basis upon which intentions are attributed to legislators, and the difficulties in aggregating individual preferences into a persuasive understanding of group intention.

Because of the difficulties of actually attributing specific intentions to collective groups, courts have taken other approaches to discerning legislative intent. One is traditionally called “imaginative reconstruction.” Its aim is to imagine what the enacting body likely would have intended on the point in question, given what is known about the law actually enacted. *Holy Trinity* took this tack, as well. It argued famously (or infamously) that “no purpose of action against religion can be imputed to any legislation, state or national, because this is a religious people. This is historically true. From the discovery of this continent to the present hour, there is a single voice making this affirmation. . . . [T]his is a Christian nation.” On this basis, the Court essentially concluded that Congress, had it been explicitly confronted with the permissibility of importing pastors, would have intended to exempt them from the law’s reach. This imaginative reconstruction of legislative intent, of course, seems to be based more on the imagination of judges than any evidence of legislator sentiment. And, of course, to the extent imaginative reconstruction depends on legislator sentiment, it faces the same problems of aggregation and attribution mentioned above with regard to specific intent.

Yet a third approach to legislative intent is called “purposivism.” Its focus is not on conscious legislator intent, but rather on a more general sense of a statute’s goals or purposes. *Holy Trinity* shows elements of this approach, as well, in concluding that the purpose of the Alien Contract Labor Act was to prevent the importation of manual labor as a way of preventing the undercutting of hourly wages. The key advantage of this approach is that, in seeking a coherent understanding of a statute’s goals, the method is more adaptable to changing circumstances and unforeseen issues. The difficulty is that statutory purposes are typically multiple and often in tension with one another. In enacting the National Industrial Recovery Act in the 1930s, for example, Congress explicitly embraced both the goal of “conserv[ing] natural resources” and the

goal of “promot[ing] the fullest possible utilization of the present productive capacity of industries.” Reconciling those purposes in particular contexts would undoubtedly require determinations of policy that the statutory text cannot dictate. In other words, using general statutory purposes to reach determinate answers to particular quandaries may well call for judgments of context and policy that clearly implicate the interpreter’s perspective as much as, if not more than, the perspective of the original legislators.

2. *Legislative Intent and Agency Enforcement Discretion.* Why would federal prosecutors opt to bring a case against a church? Politically, a church is about as sympathetic a defendant as one can imagine, especially if its offense is simply hiring a minister. It is common for legislators to employ relatively broad language while implicitly relying upon governmental enforcers (who, at least in America, tend to be politically sensitive actors) to use their discretion *not* to enforce the law in ways that will seem excessive and cause political trouble. In this case, that dynamic broke down, and in that respect, *Holy Trinity* is extraordinary. As recent scholarship indicates, the prosecution was brought by a U.S. Attorney who *opposed* immigration restriction as a policy matter and brought the church prosecution as a stunt to bring the Alien Contract Labor Act into disrepute, even making apparently facetious arguments about the need to protect American clergymen from foreign competition. Carol Chomsky, *Unlocking the Mysteries of Holy Trinity: Spirit, Letter, and History in Statutory Interpretation*, 100 COLUM. L. REV. 901 (2000).

b. Textualism

Given the difficulties of searching for legislative purpose, a number of judges and scholars have in recent decades promoted a school of statutory interpretation that purports to rely more exclusively on the actual words a legislature uses. Indeed, a venerable rule of statutory construction states that, where the words of a statute have a “plain meaning,” that meaning ought to prevail in applying the statute. This approach has appeal on a number of grounds. First, because the text of a federal statute is what majorities in both the House and Senate voted on, its plain meaning – if there is one – would seem to be the most reliable indicator of their intent. Further, the text is also the source of statutory meaning that the public most often encounters and can most easily access, so that giving weight to its plain meaning honors the values of fair notice and adherence to the rule of law.

Justice Scalia has famously gone beyond the “plain meaning rule” to argue that statutory text forms the only legitimate focus for statutory interpretation. His approach has been called “the new textualism.” Going beyond the points already mentioned, he argues – because only the statutory text traverses the constitutionally prescribed process for enacting law – that only statutory text can legitimately be a source of law. Furthermore, he has urged that purposive approaches to interpretation give judges too much interpretive leeway – *Holy Trinity* is “nothing but an invitation to judicial lawmaking” – and that textualism properly reduces the exercise of policy making discretion by the judiciary. ANTONIN SCALIA AND AMY GUTMANN, *A MATTER OF INTERPRETATION: FEDERAL COURTS AND THE LAW* (1998). See also Frank H. Easterbrook, *Text, History and Structure in Statutory Interpretation*, 17 HARV. J. L. & PUB. POL. 61 (1994); John F. Manning, *Textualism and the Equity of the Statute*, 101 COLUM. L. REV. 1 (2001).

The idea that textualism limits judicial discretion has been heatedly challenged, however. Textualist judges no less than purposivist judges seem frequently to find their way to statutory

readings that cohere with the judges' presumed policy preferences. Resorting to legislative history in search for legislative intention may actually reduce the range of plausible answers to questions of statutory construction. Jerry L. Mashaw, *Textualism, Constitutionalism, and the Interpretation of Federal Statutes*, 32 WM. & MARY L. REV. 827, 836 (1991). Moreover, empirical analysis has demonstrated that Congress more often overrides textualist interpretations of its handiwork than judicial interpretations rooted in more purposivist approaches, e.g., William N. Eskridge, Jr., *Overriding Supreme Court Statutory Interpretation Decisions*, 101 YALE L.J. 331 (1991). This certainly calls into question whether textualism more faithfully respects Congress's law-making primacy than do purposive approaches.

c. Dynamic Statutory Interpretation

Yet a third set of approaches to statutory interpretation centers less exclusively on statutory text or even on legislative history, and would give judges and lawyers more room to attend to contemporary public values in the process of statutory construction. Professor William Eskridge, the most prominent proponent of this approach, calls it "dynamic statutory interpretation." It accepts the premise that courts are agents of the legislature in implementing statutes, but asserts that the right analogy for the court is that of a "relational agent" – that is, an agent charged with carrying out its principal's specific orders and general goals over an extended period of time. Such an agent may need to be creative in figuring out how best to accomplish a legislature's goals in a world very different from the world in which a statute was enacted.

A good example where this might make a difference is a state case, *Commonwealth v. Welosky*, 276 Mass. 398 (1931), which held that women were excluded from jury service in Massachusetts. The relevant statute, enacted during the nineteenth century, provided: "A person qualified to vote for representatives to the [state legislature] shall be liable to serve as a juror." When the statute was written, women in Massachusetts could not vote, and the court concluded that the specific intent of the legislature had been to involve only men in jury service. A plain meaning approach would, of course, have yielded a contrary result in 1931 because women, in 1931, could vote in Massachusetts. But so, presumably, would have a more dynamic approach that would give weight to the vast changes that had occurred in the civic role of women in the course of intervening decades. In other words, faced with the question whether to interpret "person[s] qualified to vote" according to its 19th or 20th century meanings, a judge might determine that, in light of the Nineteenth Amendment enfranchising women, the original legislature might want its handiwork updated to reflect a current national consensus as to women's political role. Indeed, a judge might so decide even if the statute read, "Men qualified to vote" Values might trump text.

The obvious advantage of a dynamic approach to interpretation is that it helps to avoid statutory obsolescence. The difficulties it poses, of course, deal with the potential for unpredictability and what some citizens would undoubtedly regard as excessive judicial policy making.

The administrative law cases excerpted in the casebook exhibit all of these approaches, which is hardly surprising given the changing membership of the U.S. Supreme Court and the U.S. Courts of Appeals. But even an individual judge is quite likely to take different approaches

to statutory interpretation in different cases. Although such variability may raise questions about the scope of judicial discretion, it may also signify an appropriately pragmatic adaptation to the seemingly infinite variety of practical challenges posed by questions of statutory interpretation. That is, as with the administrative process itself, processes of statutory interpretation may themselves serve multiple purposes, which are sometimes in tension – bolstering electoral accountability, achieving transparency and predictability in the law, pursuing coherence in legal development, and keeping the law faithful to important public values. As judges perceive contending values coming into play in particular cases, they may weigh those values differently depending on matters of factual and legal context that are not always easy to specify in advance.

3. SOURCES OF INTERPRETIVE EVIDENCE

As vigorous as are contemporary arguments over interpretive theory, so, too, are debates over the appropriate sources of statutory meaning.

a. Text

In deciding to construe a particular statutory phrase, lawyers and judges will typically attend not only to the language of the clause in question, but also to the text and structure of the statute as a whole. For at least two reasons, courts frequently look as well to statutes on the same or related subjects. First, courts generally entertain a presumption against statutory repeal by implication. *Credit Suisse Securities (USA) LLC v. Billing*, 551 U.S. 264 (2007). Thus, if a statute is susceptible to two interpretations, one of which would implicitly override another statute, that conflict gives rise to a strong presumption that the non-conflictual interpretation is preferable. Second, when a statute is ambiguous, courts frequently cite a presumption that statutes on the same subject (“in pari materia”) should be read in harmony with one another. E.g., *Carlsbad Technology, Inc. v. HIF Bio, Inc.*, 556 U.S. 635 (2009) (statutory provision limiting appellate review of federal remand orders to state courts must be read *in pari materia* with statutory provision specifying grounds for remand, so that bar on appellate review of remand orders is limited to those based on a ground mentioned in the latter statute).

b. Extrinsic Sources

It is also common for courts to look beyond statutory texts to discern the meaning of ambiguous statutory phrasing. One source may be the relevant common law that pertained to the subject in question prior to enactment of the ambiguous statute. Though often challenged (and many times rejected), it has been a venerable rule of statutory construction that statutes “in derogation of the common law” should be narrowly construed. Another source may be contemporary dictionaries, which a judge may use to shed light on what likely was conventional understanding of a word or phrase when adopted by a legislature.

An extrinsic source that is frequently used, but subject to much controversy, is the statute’s legislative history. As we explained in the preceding Section, the process of enactment yields a series of documents pertaining to the statute’s meaning: (a) the serial versions of the bill, including amendments accepted and rejected; (b) House and Senate committee proceedings on the bill, such as hearings and markups; (c) House and Senate committee reports; (d) general

debate and amendment activity on the House and Senate floor, especially remarks of the floor managers; and (e) the conference committee's joint explanatory statement. Federal courts have permitted the use of these kinds of documents in statutory interpretation since the late 1800s (*Holy Trinity* being the leading case for their admissibility), though the routine use of such material began only with the New Deal. Nicholas R. Parrillo, *Leviathan and Interpretive Revolution: The Administrative State, the Judiciary, and the Rise of Legislative History, 1890-1950*, 123 YALE L.J. 266 (2013). Judicial reliance on legislative history reached a peak in the 1970s and 1980s and has since declined. David S. Law & David Zaring, *Law Versus Ideology: The Supreme Court and the Use of Legislative History*, 51 WM. & MARY L. REV. 1653, 1716 (2010). But it has not disappeared. Of the members of the Supreme Court, only Justice Scalia professes to ignore legislative history categorically; the others are willing to consider it, though with more skepticism and less enthusiasm than was exhibited by their predecessors thirty years ago. John David Ohlendorf, *Textualism and Obstacle Preemption*, 47 GA. L. REV. 369, 371-72 (2012) (citing cases in 2010-12). Litigators must therefore continue to be conversant with such material.

A major reason that the judiciary has become increasingly wary of legislative history is that many judges are sympathetic to the critiques leveled by the textualist movement. The most basic of these critiques is that legislative history, unlike statutory text, has not been voted on by the two chambers of Congress or presented to the President in accordance with Article I, Section 7, so it is not "law" under the Constitution. But this critique may be a misreading of the view of legislative history's defenders, who generally think such material provides helpful context for the text and therefore may resolve ambiguities therein, not that legislative history itself is "law." If textualists are comfortable using materials like dictionaries to sort out statutory meaning, e.g., *MCI Telecommunications v. A.T. & T.*, 512 U.S. 218 (1994), it is difficult to see why committee reports, floor debates or even contemporary news accounts are categorically off limits in divining legislative intent.

Textualists also criticize legislative history on the ground that it is not drafted (or even read) by members of Congress themselves, but instead by staffers or lobbyists. E.g., *Blanchard v. Bergeron*, 487 U.S. 87, 98-99 (1989) (Scalia, J. concurring). Yet, as we noted earlier (at pages 28-31), members themselves do not draft (or necessarily read) statutory text either. Legislative history and statutory text tend to be drafted by different congressional employees (the former by partisan committee staff, the latter by nonpartisan Legislative Counsel), but that is only a tendency: there are no rules that say who may draft which type of source, or to prevent lobbyists from drafting either type. It does appear that partisan committee staff and Legislative Counsel have different kinds of relationships to their congressional bosses (the former based on partisan loyalty and at-will employment, the latter on lawyer-client fiduciary duty) and different kinds of expertise (the former in policy, the latter in drafting technique). Abbe R. Gluck & Lisa Schultz Bressman, *Statutory Interpretation from the Inside—An Empirical Study of Congressional Drafting, Delegation, and the Canons: Part I*, 65 STAN. L. REV. 901, 967-69 (2013). It is not clear that these differences mean that one group's product is systematically superior to the other's as an interpretive source.

The textualist point that statutory text (unlike legislative history) goes through the Article I, Section 7 process can be restated in functionalist terms: words can become statutory text only if approved by majorities of both chambers, but words can become legislative history much more easily, for they need only be approved (or spoken) by an individual member or by a

small group of members: a bill or amendment is the responsibility of its sponsor; an utterance at a hearing, of whoever happens to be speaking; a committee report, of the majority of the reporting committee; a floor statement, of the individual speaker; and a joint explanatory statement, of the majority of the conference. In the view of textualists, the authorship of each document of legislative history by one (or a few) members means that no such document can be taken to reflect the intent of the enacting body.

To be sure, it is conventional for judges, when using legislative history, to rely especially on committee reports, statements of committee-designated floor managers, and conference reports—that is, utterances of actors to whom the chamber has delegated power, or on whom the chamber customarily relies. But do the utterances of committees and floor managers merit this privileged interpretive status? Your answer may depend on which of the two alternative images of committees (discussed above at pages 8-11) you think is more accurate: Are committees faithful agents of the chamber majority or are they dominated by “preference outliers” who self-select onto their respective committees because their constituents have an interest that is more concentrated than, and opposed to, the national interest? If committees are preference outliers, then relying upon the legislative history they produce is perverse. John F. Manning, *Textualism as a Nondelegation Doctrine*, 97 COLUM. L. REV. 673, 718-19 (1997). Some observers suggest that judges, when evaluating each piece of legislative history, should weigh it according to whether the speaker (e.g., the committee chair) had an incentive to state faithfully the views of the enacting coalition, taking into account the speaker’s institutional position and the politics surrounding the statute. Matthew D. McCubbins, Roger G. Noll, & Barry R. Weingast, *Legislative Intent: The Use of Positive Theory in Statutory Interpretation*, 57 L. & CONTEMP. PROBS. 3 (1994). Others think that congressional operations are too complex and opaque for judges to make these kinds of evaluations. JERRY L. MASHAW, GREED, CHAOS, AND GOVERNANCE: USING PUBLIC CHOICE TO IMPROVE PUBLIC LAW 96-101 (1997).

Because legislators, whether individually or in small groups, can unilaterally insert their words into a statute’s legislative record, that record is likely to contain disparate and even contradictory statements of meaning—probably more likely than is the statute’s text, since words get into the text only if they clear the high bar of a majority vote of both chambers. The heterogeneity of legislative history relative to statutory text arguably renders legislative history less coherent, more confusing, more costly to research and evaluate, and more susceptible to biased and opportunistic interpretation. ADRIAN VERMEULE, JUDGING UNDER UNCERTAINTY: AN INSTITUTIONAL THEORY OF LEGAL INTERPRETATION 112-14 (2006). But see Victoria F. Nourse, *A Decision Theory of Statutory Interpretation: Legislative History by the Rules*, 122 YALE L.J. 70 (2012) (arguing that attention to text and to congressional procedure and organization can help judges identify the most telling pieces of legislative history and thereby greatly mitigate the heterogeneity problem).

Notably, however, administrative agencies seem better positioned to meet this challenge than almost any other kinds of litigants, for agencies are so deeply and regularly involved in the legislative process that they know the discourse better than almost anyone. Peter L. Strauss, *When the Judge Is Not the Primary Official with Responsibility to Read: Agency Interpretation and the Problem of Legislative History*, 66 CHI.-KENT L. REV. 321 (1990). Historically, it was agencies that first provided legislative history to the courts on a wholesale basis. Parrillo, *supra*. To some, the advantage enjoyed by agencies (and big law firms) in researching legislative history

makes it unfair for courts to rely upon it. E.g., Robert H. Jackson, *The Meaning of Statutes: What Congress Says or What the Courts Say*, 34 A.B.A.J. 535, 538 (1948) (warning that judicial reliance on legislative history puts “knowledge of the law practically out of reach of all except the Government and a few law offices”). To others, agencies’ intimacy with legislative history—and congressional overseers’ frequent use of such documents to provide directives to agencies—counsels in favor of judges using it, since doing so will better align judicial decisions with a source that legislators intend for agencies (the primary implementers of statutes) to follow. Robert A. Katzmann, *Madison Lecture: Statutes*, 87 N.Y.U. L. REV. 637, 656-61 (2012).

Besides legislative history, other extrinsic sources may be available if, as is often the case, the question of statutory interpretation now facing a lawyer or judge is not a matter of first impression. For example, even if a statute might be viewed at first glance as ambiguous, its interpretation in an earlier judicial opinion may well be deemed binding on a court or agency later in time. Indeed, the judicial practice of *stare decisis* – following precedents unless formally overruled – is especially strong in statutory cases because of the presumption that Congress could always have overridden a judicial statutory interpretation if the earlier court got it wrong. See, e.g., *Floyd v. Kuhn*, 407 U.S. 258 (1972) (reaffirming precedents construing major league baseball to be beyond the scope of the Sherman Antitrust Act). Likewise, as discussed in Chapter 7 of the Casebook, courts will frequently defer to administrative interpretations of statutes if an agency got there first, as it were. There is also a rule, not always followed, that treats an executive branch interpretation of statutory language as authoritative if Congress reenacted the statutory language in question after being apprised of the executive branch view. See cases cited in William Eskridge, Jr., *Interpreting Legislative Inaction*, 87 MICH. L. REV. 67 (1988).

The debate over theories of interpretation does not map neatly onto debates over sources of interpretive evidence. Textualists, of course, will likely eschew legislative history, but followers of purposivism or dynamic interpretation may still disagree about which sources of evidence are weightiest both in general and in specific cases.

4. CANONS OF INTERPRETATION

In addition to the different sources of interpretive material mentioned above, lawyers and judges have available yet another set of interpretive tools. These are so-called “canons of construction,” which are “principles or presumptions that judges [and lawyers] use to discern – or, at times, to construct – statutory meaning.” JOHN F. MANNING AND MATTHEW C. STEPHENSON, *LEGISLATION AND REGULATION* 219 (2010). Some of these canons are simply generalizations about the use of language, and purport to function only as rules of thumb for decoding English text. Others, however, are avowedly based on substantive values, not semantic understanding. For example, the “rule of lenity” holds that ambiguities in criminal statutes are to be construed favorably to defendants. A variety of constitutional values may be cited in support of the rule – the value to due process, for example, of not imposing criminal liability on anyone without the clearest possible statement of the law. But the rule is not a mere decoding of language. It brings into the process of statutory interpretation values that are grounded in sources outside the statute itself.

The semantic canons of interpretation have a common-sense feel, although they may in fact rest on debatable theories of language or dubious assumptions about legislative drafting skill.

Among the most commonly cited are these:

- “Expressio unius est exclusio alterius” holds that the mention of one thing in a statute precludes the inclusion of another. See, e.g., *Arizona v. United States*, 132 S.Ct. 2492 (2012) (Scalia, J., concurring in part and dissenting in part) (arguing that federal law expressly preempting state laws that punish “those who employ” undocumented aliens should be read to imply a lack of pre-emption for other state laws, including laws punishing “those who seek or accept employment”).
- The “noscitur a sociis” (“known by its associates”) canon holds that an ambiguous term is presumed to be of the same kind as terms that surround it. Thus, if a statute refers to “wrestlers, boxers, and fencers,” we assume “boxers” refers to pugilists, not canines or a kind of underwear. See, e.g., *Freeman v. Quicken Loans, Inc.*, 132 S.Ct. 2034 (2012) (term “percentage” in statutory bar to accepting “any portion, split, or percentage of any charge made or received for the rendering of a real estate settlement service,” should be understood, like the words “portion” and “split,” to mean “less than the whole,” that is, not 100 per cent).
- The “ejusdem generis” (“of the same kind”) canon holds that when general terms in a statute follow a series of specific terms, the general terms are presumed to include only others within the same category exemplified by the specific term. Thus, if a statute refers to “automobiles, trucks, wagons, and motorcycles, and any other vehicle,” “vehicle” may properly be understood to refer only to forms of ground transportation and not airplanes. *McBoyle v. United States*, 283 U.S. 25 (1931).
- The “presumption of consistent meaning,” albeit frequently overcome, holds that, when a word appears on multiple occasions in a single statute, it is generally understood to have the same meaning throughout. But see, e.g., *General Dynamics Land Systems, Inc. v. Cline*, 540 U.S. 621 (2004) (concluding that “age,” in the Age Discrimination in Employment Act, sometimes means chronological age and sometimes means “old age”).
- The “presumption against surplus language” holds that, where possible, statutes should be read to render all words and phrases as independently meaningful. (It is hard to believe the originator of this canon ever met an actual lawyer.) See *Babbitt v. Sweet Home Chapter of Communities for a Great Oregon*, 515 U.S. 687 (1995) (approving interpretation of “harm” to species proscribed by the Endangered Species Act as including general degradation of habitat, not just intentional acts that directly kill or injure wildlife, which are proscribed by other words in the statute).

Various cases also cite rules of thumb as to grammar and usage, and, somewhat controversially, the proposition that statutes ought to be read to avoid absurd results. The absurdity avoidance canon is debatable because the line may be blurry between “absurd” results and results that appear simply to be unreasonable. Thus, for example, although Justice Scalia has conceded the appropriateness of the presumption against absurdity, at least in narrow circumstances, other scholars believe the presumption undermines the premises of textualism and amounts to inappropriate recourse to a judge’s intuition as to a statute’s likeliest purposes. John F. Manning, *The Absurdity Doctrine*, 116 HARV. L. REV. 2387 (2003).

In addition to the rule of lenity, two other substantive canons are perhaps of greatest importance in public law cases. One is the so-called constitutional avoidance canon. It holds that, where one of two reasonably competing statutory interpretations would raise serious questions as to the constitutionality of the statute, the other interpretation is favored. In some cases, the Court has split on the proper implementation of the canon – either because the dissenters believe the Court has used the avoidance canon to effectively rewrite an unambiguous statute, e.g., *NLRB v. Catholic Bishop of Chicago*, 440 U.S. 490 (1979) or because the dissenters believe the Court has unjustifiably failed to deploy the canon because the majority is excessively eager to resolve the constitutional question that one interpretation poses, e.g., *Rust v. Sullivan*, 500 U.S. 173 (1991). The canon is rooted, however, in the Court’s long-standing view that it should avoid the unnecessary resolution of constitutional questions because the potential for interference in the work of the elected branches and the difficulty of “correcting” erroneous constitutional judgments make the Court’s constitutional review role especially sensitive.

The second is really a pair of presumptions in support of federalism. The Court has long held, on one hand, that federal preemption of state law in areas of traditional state concern is not to be inferred unless preemption was “the clear and manifest purpose of Congress.” *Rice v. Santa Fe Elevator Corporation*, 331 U.S. 218 (1947). The Court more recently extended this presumption into a so-called plain statement requirement. The Court held in *Gregory v. Ashcroft*, 501 U.S. 452 (1991), that a federal statute should not be read to alter the “usual constitutional balance” between state and federal powers, unless Congress makes its intent “unmistakably clear in the language of the statute.” In *Gregory*, the Court relied on that presumption to exempt state judges from a federal ban on mandatory retirement rules.

A significant debate exists over the utility of the canons in bringing order or greater objectivity to the resolution of statutory interpretation questions. Karl Llewellyn famously suggested that no statutory interpretation could be persuasively grounded on the canons without more because “there are two opposing canons on almost every point.” Karl N. Llewellyn, *Remarks on the Theory of Appellate Decision and the Rules of Canons About How Statutes Are to Be Construed*, 3 VAND. L. REV. 395, 401 (1950). Others defend the canons’ utility in guiding interpretation, at least on the ground that “[t]he canons present no greater opportunity for judicial willfulness than do other techniques of statutory interpretation” Jonathan R. Macey & Geoffrey P. Miller, *The Canons of Statutory Construction and Judicial Preference*, 45 VAND. L. REV. 647, 650 (1992). In any event, there is empirical evidence that the canons have become more popular on the Supreme Court in recent years, and some scholars have objected to their use in derogation of a more careful search for legislative intent as the primary guide to interpretation. James J. Brudney & Corey Ditslear, *Canons of Construction and the Elusive Quest for Neutral Reasoning*, 58 VAND. L. REV. 1, 7 (2005).

5. ALLOCATING INTERPRETIVE AUTHORITY

In administrative law, the foregoing questions about *how* to interpret statutes are closely intertwined with difficult issues also about *who* gets to do so – issues, that is, about the allocation of authority between the executive and judicial branches for saying what statutes mean. Agency interpretations of statutory law are frequently challenged in court, inevitably posing the question whether courts owe agencies any deference in reviewing their statutory interpretations. On one hand, it is, as the Supreme Court so famously asserted in *Marbury v. Madison*, 5 U.S. (1 Cranch)

137, 177 (1803), “emphatically the province and duty of the judicial department to say what the law is.” A lack of serious judicial scrutiny of agency legal interpretation would pose an obvious threat to rule of law values. On the other hand, in drafting a statute empowering an agency to perform some public function, Congress has chosen the executive branch – not the judiciary – to act as its agent. Too intensive a judicial second-guessing of agency interpretation could undermine the agency’s role as primary policy maker in the implementation of statutes and negate the value of its typically greater domain expertise. The surrounding issues are explored in some depth in Chapter 7 of the Casebook.

Of course, given the institutionally distinct roles of courts and agencies in relation to the implementation of statutes, it might be considered not only permissible but normatively appropriate for agencies and courts to take quite different approaches to statutory interpretation. If so, sorting out the problem of appropriate deference becomes that much more complex. See, Jerry L. Mashaw, *Between Facts and Norms: Agency Statutory Interpretation as an Autonomous Enterprise*, 55 U. TOR. L. J. 497 (2005). As you encounter agency interpretations of statutory law in the Casebook, it will deepen your understanding of how agencies work and of the relationship between agencies and the legislative and judicial branches to consider how the agency likely developed its interpretation – both procedurally and analytically – and to what extent, and for what reasons, the reviewing court is or is not giving weight to the agency’s reading. Do reviewing courts seem to you to be approaching questions of statutory interpretation in ways you find predictable? Persuasive? Mindful of what you take to be an appropriate balance of powers among the three branches? These questions are utterly central to the subject of administrative law.